

**BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA CGM S.A., COSCO  
SHIPPING LINES CO. LTD., EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982,  
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK  
A/S, MSC MEDITERRANEAN SHIPPING  
COMPANY S.A., OCEAN NETWORK EXPRESS  
PTE. LTD., WAN HAI LINES LTD., YANG MING  
MARINE TRANSPORT CORP., AND ZIM  
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

**DECLARATION OF DAVID GOLDEN  
IN SUPPORT OF COMPLAINANT'S MOTION TO COMPEL**

I, David Golden, hereby declare as follows:

1. I am a partner at Constantine Cannon LLP, counsel for Complainant Intermodal Motor Carriers Conference of the American Trucking Associations ("IMCC").
2. I am a member in good standing of the Bar of the District of Columbia and have made an appearance before the Federal Maritime Commission in this proceeding.
3. I have personal knowledge of the facts set forth in this Declaration and am fully familiar with the proceedings in this case.
4. I submit this Declaration in support of Complainant IMCC's Motion to Compel.

5. Attached hereto as **Exhibit 1** is a true and correct copy of the Subpoena Duces Tecum served on TRAC Direct ChassisLink Inc. (“DCLI”).

6. Attached hereto as **Exhibit 2** is a true and correct copy of the Subpoena Duces Tecum served on Interpool, Inc. d/b/a TRAC Intermodal (“TRAC Intermodal”).

7. Attached hereto as **Exhibit 3** is a true and correct copy of the Subpoena Duces Tecum served on Flexi-Van Leasing, Inc. (“Flexi-Van”).

8. Attached hereto as **Exhibit 4** is a true and correct copy of a letter dated March 30, 2021 sent from counsel for nonparties Direct ChassisLink Inc. (“DCLI”), Flexi-Van Leasing, Inc. (“Flexi-Van”), and Interpool, Inc. d/b/a TRAC Intermodal (“TRAC Intermodal”) (collectively, the “IEPs”), to Complainant IMCC.

9. Attached hereto as **Exhibit 5** is a true and correct copy of a letter dated April 22, 2021 sent by counsel for the IEPs to Complainant IMCC.

10. Attached hereto as **Exhibit 6** is a true and correct copy of a letter dated May 3, 2021 sent by Complainant IMCC to counsel for the IEPs.

11. Attached hereto as **Exhibit 7** is a true and correct copy of a letter dated May 13, 2021 sent by counsel for the IEPs to Complainant IMCC.

Respectfully submitted,

**DATED:** May 14, 2021

/s/ David D. Golden

David D. Golden  
CONSTANTINE CANNON LLP

# Exhibit 1

**BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT  
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MARINE TRANSPORT CORP., AND ZIM  
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

**SUBPOENA DUCES TECUM TO A NON-PARTY**

**TO: DIRECT CHASSISLINK INC.  
C T CORPORATION SYSTEM  
820 BEAR TAVERN ROAD  
WEST TRENTON, NJ 08628**

You are hereby commanded to produce to the Complainant, the Intermodal Motor Carriers Conference of the American Trucking Associations, Inc., the documents requested and in the manner set forth in Definitions, Instructions and Document Requests found in "Exhibit A," attached hereto. This production must take place within twenty (20) days after service of this

subpoena. Failure to comply with this subpoena may result in a finding of contempt and other penalties.

You have the right to object, by motion and with notice to the party requesting the subpoena, at any time prior to the date set forth in this subpoena for compliance. See 46 C.F.R. § 502.132. Should you choose to object, you should communicate in writing your reasons for your objection with respect to each item or category to which you object. If production is withheld on a claim the contents at issue are privileged or subject to protection, that claim shall be made expressly and shall be supported by a description that is sufficient to enable the demanding party to contest the claim. The parties in this case are subject to a Stipulation and Order of Confidentiality, attached hereto as “Exhibit B.”

Signed this 15th day of March, 2021.

  
Erin M. Wirth  
Administrative Law Judge

## **EXHIBIT A**

**TO: DIRECT CHASSISLINK INC.  
C T CORPORATION SYSTEM  
820 BEAR TAVERN ROAD  
WEST TRENTON, NJ 08628**

Please produce the Documents requested below electronically, either by a secure online file transfer service or by hard drive. If producing by hard drive, please deliver to Constantine Cannon LLP, 335 Madison Avenue 9<sup>th</sup> Fl., New York, NY 10017. Documents must be produced in accordance with the Definitions and Instructions set forth below.

### **DEFINITIONS**

1. The following rules of construction should apply to all discovery requests:
  - a. “All” should be construed to include the collective as well as the singular and shall mean “each,” “any,” and “every.” The terms “any,” “all,” “each” and “every” should be understood in either their most or least inclusive sense as necessary to bring within the scope of the Request all responses that might otherwise be construed to be outside of the scope.
  - b. “And” and “or” should be construed so as to require the broadest possible response. If, for example, a request calls for information about “A or B” or “A and B,” You should produce all information about A and all information about B, as well as all information about A and B collectively. In other words, “or” and “and” should be read as “and/or.”
  - c. “Any” shall be construed to mean “any and all.”
  - d. “Including” shall be construed to mean “without limitation.” “Including” is used to emphasize certain types of documents requested and should not be construed as limiting the request in any way.

- e. The use of the singular form of any word includes the plural and vice versa.
  - f. Each of the words “concerning,” “reflecting,” “relating,” “supporting,” “negating,” “evidencing” and “referring” shall be defined to include the common meanings of all those terms and shall include indirect as well as direct references to the subject matter set forth in the Request.
2. “Additional Chassis Contributor” should be construed to be a chassis contributor to the POP other than Interpool, Inc. DBA TRAC Intermodal, Direct ChassisLink Inc., and Flexi-Van Leasing, Inc.
3. “CH” refers to carrier haulage, which is a carriage arrangement whereby a Respondent Ocean Carrier bears the financial responsibility for container delivery, regardless of whether the container movement is under a through rate or contract. CH includes container delivery sometimes referred to as an MH exception.
4. “CCM” means Respondent Consolidated Chassis Management, LLC, and its affiliates, parents, subsidiaries, divisions, predecessors, and successors.
5. “Communication” or “Communications” means the oral or written transmittal of information of any kind (in the form of facts, ideas, inquiries, or otherwise) by any means, including any face to face, telephonic, video or other virtual meeting, conversation, discussion, conference, correspondence, message, or other written, electronic or oral transmission, exchange, or transfer of information in any form between two or more persons, including in person or by telephone, facsimile, telegraph, telex, e-mail, text message, instant message, collaboration software tools such as Slack, or other medium. The phrase “communication between” is defined to include instances where one party communicates with another party but that other party does not necessarily respond.

6. “Document” or “Documents” has the broadest meaning possible, including all Communications. “Document” or “Documents” includes all “writings,” “sound recordings,” “data or data compilations” and “photographs” as those terms are defined in 46 C.F.R. § 502.146. *See also* 46 C.F.R. §§ 502.12, 502.141 & 502.204 (incorporating Federal Rule of Civil Procedure 34 and Rule 1001 of the Federal Rules of Evidence). Without limiting the generality of the foregoing, the term “Documents” includes both hard copy documents as well as electronically stored data files. Regarding hard copy documents, the term “Documents” includes all written or printed matter of any kind, including the originals and all non-identical copies thereof (whether different from the originals by reason of any interlineation, receipt stamp, indication of copies sent or received, or other notation made on such copies or otherwise), including memoranda, notes, opinions, compilations, chronicles, minutes, agenda, notations of any sort of conversations, contracts, agreements, reports, summaries, teletypes, telefax, thermafax, confirmations, inter-office and intra-office Communications, printed e-mail, printed text messages, printed instant messages, all written or graphic records of representations of any kind, and all records of representations of any kind. Regarding electronically stored data files, the term “Documents” includes correspondence, memoranda, legal pleadings, calendars, diaries, travel records, summaries, records of telephone conversations, telegrams, teletypes, telefax, thermafax, confirmations, notes, reports, compilations, notebooks, work papers, graphs, charts, blueprints, books, pamphlets, brochures, circulars, manuals, instructions, ledgers, drawings, sketches, photographs, videotapes, audiotapes, film and sound reproductions, e-mails, instant messages, text messages, collaboration software tools (including Slack), internal or external web sites, audio or video discs, data on magnetic or optical storage media (*e.g.*, servers, storage area networks, hard drives, backup tapes, CDs, DVDs, Bluray, DVD-HD thumb flash drives, floppy

disks or any other type of portable storage device, etc.) stored as an “active” or backup file, in its native format, computer files, discs and drives, sales, advertising and promotional literature, agreements, stored recordings, minutes or other records of meetings, computer data (including information or programs stored in a computer, whether or not ever printed out or displayed) and all drafts, alterations, modifications, changes and amendments of any of the foregoing, all written or graphic records of representations of any kind, and all mechanical or electronic data, records of representations of any kind, including photographs, microfiche, microfilm, videotape, records and motion pictures, and electronic, mechanical, or electric records or representations, tapes, cassettes, discs, magnetic cards, recordings, and cloud storage services.

7. “Electronically Stored Information,” abbreviated as “ESI” has the same meaning and scope as it has in the FMC’s Rules of Practice, as informed by the Federal Rules of Civil Procedure, and includes the following:

- a. structured and unstructured data, as those terms are defined in The Sedona Conference Glossary, available at [www.thesedonaconference.org/publications](http://www.thesedonaconference.org/publications);
- b. activity listings of electronic mail receipts and/or transmittals;
- c. output resulting from the use of any software program, including word processing documents, spreadsheets, database files, charts, graphs and outlines, electronic mail, text messages (SMS, MMS or TMS), instant messages (such as iMessage, WhatsApp, WeChat, Google Hangout or similar program) or bulletin board programs, operating systems, source code, PRF files, PRC files, batch files, ASCII files, and all miscellaneous media on which they reside and regardless of whether said electronic data exists in an active file, a deleted file, or file fragment;

- d. any and all items stored on computer memories, hard disks, floppy disks, CD discs, DVD discs, flash drives, thumb drives, memory cards, magnetic tape, microfiche, or in any other vehicle for digital data storage and/or transmittal, such as a personal digital assistant (e.g., iPhone, Android, Blackberry, Smart Phone or similar device) and file folder tabs, and/or containers and labels appended to, or relating to, any physical storage device associated with each original and/or copy of all documents requested herein;
- e. any and all items stored on voice-mail systems, websites, company intranet sites, chat rooms and social networking websites (e.g., Facebook, Twitter, LinkedIn, and other social websites listed at [http://en.wikipedia.org/wiki/List\\_of\\_social\\_networking\\_websites](http://en.wikipedia.org/wiki/List_of_social_networking_websites)); and
- f. any and all data, data compilations, and data analyses.

8. An “inland intermodal terminal” means rail terminals, container yards, freight stations, intermodal equipment storage areas, container depots, and similar facilities in the United States.

9. “MH” refers to merchant haulage, which is a carriage arrangement whereby the shipper or designated motor carrier bears the financial responsibility for container delivery. MH does not include carrier arrangements, sometimes called an MH exception, whereby a Respondent Ocean Carrier bears the financial responsibility for container delivery even though such delivery is not under a through rate or contract.

10. “Respondent Ocean Carriers” are CMA CGM S.A.; COSCO Shipping Lines Co. LTD.; Evergreen Line Joint Service Agreement, FMC Agreement No. 011982; Hapag-Lloyd AG; HMM Co. Ltd.; Maersk a/s; MSC Mediterranean Shipping Company S.A.; Ocean Network

Express Pte. Ltd.; Wan Hai Lines Ltd.; Yang Ming Marine Transport Corp.; and Zim Integrated Shipping Services.

11. “Person” or “Persons” includes individuals, corporations, partnerships, limited partnerships, unincorporated associations, and all other governmental and non-governmental entities.

12. “POP” is the Pool of Pools at the Port of Los Angeles and the Port of Long Beach operated by Interpool, Inc. DBA TRAC Intermodal, Direct ChassisLink Inc., and Flexi-Van Leasing, Inc. and their affiliates.

13. “You” or “Yours” means Direct ChassisLink Inc. and its affiliates, parents, subsidiaries, divisions, predecessors, successors and DBAs.

### **INSTRUCTIONS**

1. Except as to Documents and things as to which You assert a claim of privilege or other exemption from disclosure, furnish all Documents or things in Your actual or constructive possession, custody or control, or known or available to You, regardless of the physical location of the Documents, or whether such Documents or things are possessed directly by You or by Your employees, agents, representatives, affiliates, subsidiaries, accountants, attorneys, investigators or consultants.

2. If any Document covered by these requests is withheld by reason of a claim of attorney-client privilege, attorney work product protection, or any other privilege or protection, please furnish a log providing the following information with respect to each such withheld document: date, author, recipients, general subject matter sufficient to make a prima facie determination whether the asserted privilege has been properly invoked, and the legal basis upon which the Document has been withheld.

3. If any requested Document cannot be produced in full, You are to produce it to the extent possible, indicating which Document, or portion of such Document, is being withheld, and the reason that it is being withheld.

4. If production of any portion of a Document is required pursuant to these Requests, produce the entirety of that Document.

5. Documents not otherwise responsive to these Requests shall be produced if such Documents mention, discuss, refer to, or explain the Documents that are called for by these Requests, or if such Documents are attached to Documents called for by these Requests and constitute routing slips, transmittal memoranda, letters, cover sheets, comments, evaluation or similar materials.

6. All Documents shall be produced in the same order as they are kept or maintained by You in the ordinary course of Your business. If any Documents have been removed from the files in which they were found for purposes of producing them in response to these Requests, indicate for each Document the file(s) from which the Document(s) was (or were) originally located.

7. If a Document once existed and has subsequently been lost, destroyed, or is otherwise missing, please provide sufficient information to identify the Document and state the details concerning its loss.

8. With respect to any Document maintained or stored electronically, please harvest it in a manner that maintains the integrity and readability of all data, including all metadata.

9. Unless otherwise agreed, all ESI should be produced in native format in the original electronic file format(s) of the Documents or by electronic file transfer. Specifically, and in no way limiting the generality of the foregoing, presentations, such as PowerPoint

presentations, and data compilations, such as Excel spreadsheets, shall be produced in native format.

10. Data called for by this Request must be submitted electronically in a reasonably usable compilation that will allow IMCC to access the information it contains. For IMCC to be able to access and interpret data, You must provide, for each database, a Data Dictionary that includes, for each table in the database:

- a. the name of the table;
- b. a general description of the information contained;
- c. the size in both number of records and megabytes;
- d. a list of fields;
- e. the format, including variable type and length, of each field;
- f. a definition for each field as it is used by You, including the meanings of all codes that can appear as field values;
- g. the fields that are primary keys for the purpose of identifying a unique observation;
- h. the fields that are foreign keys for the purpose of joining tables; and
- i. an indication of which fields are populated.

11. Please produce all Documents maintained or stored electronically in native, electronic format with all relevant metadata intact. Encrypted or password-protected Documents should be produced in a form permitting them to be reviewed.

12. Please organize electronic Documents produced for inspection in the same manner that You store them (e.g., if maintained by a custodian, such as e-mail residing on an e-mail server, please organize Documents for production by custodian; if maintained as a subfolder

of “My Documents” on a custodian’s hard drive, please organize Documents for production by custodian with path information preserved, etc.).

13. Documents attached to each other should not be separated, including hard-copy versions of Documents attached to hard-copy printouts of e-mails produced pursuant to these Requests.

14. Documents maintained or stored in paper, hard-copy form shall be produced as searchable .PDF (*i.e.*, portable Document format files with embedded text) and in an appropriate and usable manner (*e.g.*, by copying such data onto an external hard drive).

15. These requests require production of Documents in the same form and same order as they are kept in the usual course of business or organized and labeled to correspond with the requests set forth below.

16. Documents stored as electronic data on magnetic, optical, or other storage media as “active” or “backup” files shall be produced in their native formats with any associated metadata.

17. To the extent responsive Documents reside on databases and other such systems and files, You are requested to produce the relevant database in useable form and/or permit access for inspection, review and extraction of responsive information.

18. Each document request, and each subpart thereof, shall be separately set forth and accorded a separate answer. Each response shall first set forth verbatim the document request to which it is responsive, followed by Your response.

19. No part of a document request shall be left unanswered merely because an objection was interposed to another part of the document request.

20. If You object to any document request or subpart thereof, the objection shall state with specificity all grounds. Any ground not stated shall be waived.

21. If any objection is made to any document request, all Documents covered by that request but not subject to the objection should be produced.

22. If any information specified in this Request appears on any page of any document, all pages of the document shall be produced in response to this Request.

23. These requests seek Documents concerning the provision of chassis in the United States, in whole or in part.

### **DOCUMENT REQUESTS**

#### **REQUEST FOR PRODUCTION NO. 1.**

Documents and Communications relating to contracts or agreements with Respondent Ocean Carriers (and any amendments thereto) to provide chassis for the transport of Respondent Ocean Carrier containers, including (1) Your responses to requests for proposals from Respondent Ocean Carriers and negotiations thereof, (2) Your proposals to Respondent Ocean Carriers related to the withdrawal of Respondent Ocean Carriers from CCM-managed chassis pools and negotiations thereof, (3) Your analyses of chassis pricing for CH container movements and the effect on such pricing from designating or not designating You as the preferred/default provider for MH container movements and/or allowing or not allowing motor carrier chassis choice for MH movements, and (4) Your analyses of the effects of chassis interoperability or non-interoperability with other chassis providers or chassis pools at ports or inland intermodal terminals on availability operational efficiency and quality of chassis pricing. Documents responsive to this request include Documents submitted to Your board of directors, management, and/or owners, such as strategy memoranda, presentations, and business plans, including with

respect to topics (1) – (4). The Relevant Time Period for this Request is from January 1, 2011 to the present.

**REQUEST FOR PRODUCTION NO. 2.**

Documents and/or data sufficient to show for each port or inland intermodal terminal at which You provide chassis for Respondent Ocean Carriers: (1) the number of Respondent Ocean Carrier container movements that utilize chassis provided by You that are CH movements; (2) the number of Respondent Ocean Carrier container movements that utilize chassis provided by You that are MH movements; (3) the number of Respondent Ocean Carrier MH container movements that do not utilize a chassis provided under Your contracts with Respondent Ocean Carrier; (4); the average and median age of Your chassis; and (5) Your daily rental prices and amendments and updates thereto for chassis used in MH movements. Documents and/or data responsive to categories (1), (2), and (3) may be provided in a format that aggregates such data no less frequently than monthly by any Respondent Ocean Carrier. Documents and/or data responsive to category (4) may be provided in a format that aggregates such data no less frequently than semiannually by port and inland intermodal terminal. The Relevant Time Period for this Request is from January 1, 2015 to the present.

**REQUEST FOR PRODUCTION NO. 3.**

Documents sufficient to show Your discounts, if any, below daily rental prices provided to motor carriers for chassis to be utilized for MH movements at each port or inland intermodal terminal at which You provide chassis for Respondent Ocean Carriers, including Your reasons and strategy for providing such discounts. Documents responsive to this request include Documents submitted to Your board of directors, management, and/or owners, including strategy

memoranda, presentations, and business plans and contracts including such discounts, if any.

The Relevant Time Period for this Request is from January 1, 2015 to the present.

**REQUEST FOR PRODUCTION NO. 4.**

Documents and Communications related to Flexi-Van Leasing, Inc. and Direct ChassisLink, Inc.'s January 2014 request for a Department of Justice Antitrust Division Business Review Letter.

**REQUEST FOR PRODUCTION NO. 5.**

Documents and Communications relating to the FMC's 2019 Memphis Study Supply Chain Innovation Team in Fact Finding Investigation No. 28.

**REQUEST FOR PRODUCTION NO. 6.**

Your Documents and Communications related to the interview of Ryan Houfek, published on July 31, 2020 in *American Shipper*, titled "Q&A: DCLI calls national chassis pool debate an illusion."

**REQUEST FOR PRODUCTION NO. 7.**

Documents sufficient to show the operation of the POP, including (1) the system for financial settlement among participating POP chassis contributors, (2) the billing for chassis usage in the POP by chassis contributors, (3) the quality of chassis contributed to the POP and maintenance of roadability, (4) the eligibility of an Additional Chassis Contributor to participate as a chassis contributor to the POP, (5) the entities responsible for the administration of the POP, and (6) any decisions or votes by participants in the POP to allow or not allow the institution of motor carrier chassis choice on MH movements. Documents responsive to this request include agreements, manuals, and procedures, including any amendments thereto. The Relevant Time Period for this Request is from January 1, 2014 to the present.

**REQUEST FOR PRODUCTION NO. 8.**

Documents and Communications relating to the establishment and continuation of the eligibility requirement that Additional Chassis Contributors to the POP must have a contract with an ocean carrier (or other carrier by water) and relating to the acceptance or rejection of Additional Chassis Contributors to the POP. The Relevant Time Period for this Request is from January 1, 2014 to the present.

**REQUEST FOR PRODUCTION NO. 9.**

Documents sufficient to show Your analyses of the benefits and harms of establishing and/or disestablishing interoperable chassis pools at each port or inland intermodal terminal at which You provide chassis for Respondent Ocean Carriers, including pools managed by CCM. Documents responsive to this request include Documents submitted to Your board of directors, management, and/or owners, including strategy memoranda, presentations, and business plans. The Relevant Time Period for this Request is from January 1, 2015 to the present.

**REQUEST FOR PRODUCTION NO. 10.**

Documents sufficient to show Your annual revenues from each Respondent Ocean Carriers for CH and/or MH movements at each port, inland intermodal terminal, and/or geographical region served by You. The Relevant Time Period for this Request is from January 1, 2011 to the present.

**REQUEST FOR PRODUCTION NO. 11.**

Documents sufficient to show Your organization, ownership, and reporting responsibilities for chassis at each port and inland intermodal terminal at which You provide chassis, including the persons responsible for chassis provisioning and for negotiating contracts

with Respondent Ocean Carriers. The Relevant Time period for such requests is from January 1, 2019 to the present.

## **EXHIBIT B**

**FEDERAL MARITIME COMMISSION**  
**Office of Administrative Law Judges**

INTERMODAL MOTOR CARRIERS CONFERENCE, AMERICAN  
TRUCKING ASSOCIATIONS, INC., *Complainant*

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT ASSOCIATION  
INC.; CONSOLIDATED CHASSIS MANAGEMENT, LLC;  
CMA CGM S.A.; COSCO SHIPPING LINES Co. LTD.;  
EVERGREEN LINE JOINT SERVICE AGREEMENT, FMC No.  
011982; HAPAG-LLOYD AG; HMM Co. LTD.; MAERSK A/S;  
MSC MEDITERRANEAN SHIPPING COMPANY S.A.;  
OCEAN NETWORK EXPRESS PTE. LTD.; WAN HAI LINES LTD.;  
YANG MING MARINE TRANSPORT CORP.; AND  
ZIM INTEGRATED SHIPPING SERVICES, *Respondents*.

**DOCKET NO. 20-14**

Served: March 4, 2021

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**ORDER OF:** Erin M. WIRTH, *Chief Administrative Law Judge*.

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**ORDER ENTERING STIPULATION**

On March 1, 2021, the parties filed a joint motion seeking entry of a stipulation and order of confidentiality with exhibit A attaching the stipulation and order of confidentiality ("Stipulation"). The parties jointly request that the Stipulation be entered as an order in this matter.

The joint request is **GRANTED**, and it is hereby **ORDERED** that the Stipulation shall be entered as an order in this proceeding.



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Erin M. Wirth  
Chief Administrative Law Judge

**UNITED STATES OF AMERICA  
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA CGM S.A., COSCO  
SHIPPING LINES CO. LTD., EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982,  
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK  
A/S, MSC MEDITERRANEAN SHIPPING  
COMPANY S.A., OCEAN NETWORK EXPRESS  
PTE. LTD., WAN HAI LINES LTD., YANG MING  
MARINE TRANSPORT CORP., AND ZIM  
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

**JOINT MOTION FOR ENTRY OF STIPULATION  
AND ORDER OF CONFIDENTIALITY**

The Parties in the above-captioned Proceeding, Complainant, Intermodal Motor Carriers Conference of the American Trucking Associations, Inc. and Respondents, Ocean Carrier Equipment Management Association, Inc. (“OCEMA”), Consolidated Chassis Management, LLC (“CCM”), CMA CGM S.A. (“CMA”), COSCO Shipping Lines (“COSCO”), Evergreen Line Joint Service Agreement, FMC No. 011982 (“Evergreen”), Hapag-Lloyd AG (“Hapag-Lloyd”), HMM Co. Ltd. (“HMM”), Maersk a/s (“Maersk”), MSC Mediterranean Shipping Company S.A. (“MSC”), Ocean Network Express Pte. Ltd. (“ONE”), Wan Hai Lines Ltd. (“Wan Hai”), Yang Ming Marine Transport Corp. (“Yang Ming”), and Zim Integrated Shipping Services (“Zim”) (collectively “the Parties”) hereby move the Commission to enter the

Stipulation and Order of Confidentiality executed by the Parties and attached hereto as Exhibit

A. The Parties have jointly drafted the attached and agree to be bound by all of the terms contained therein.

WHEREFORE, the Parties request that the Commission grant this motion for entry of the submitted Stipulation and Order of Confidentiality.

Respectfully submitted,

DATED: March 1, 2021

/s/ W. Stephen Cannon

W. Stephen Cannon  
David D. Golden  
Seth D. Greenstein  
Richard O. Levine  
J. Wyatt Fore  
Osob M. Samantar  
CONSTANTINE CANNON LLP  
1001 Pennsylvania Avenue, NW  
Suite 1300N  
Washington, DC 20004  
Phone: 202-204-3500  
scannon@constantinecannon.com

Richard Pianka  
American Trucking Associations, Inc.  
950 N. Glebe Rd. Ste. 210  
Arlington, VA 22203  
(703) 838-1889  
rpianka@trucking.org

*Counsel for Complainant  
Intermodal Motor Carriers Conference of the American Trucking Associations*

/s/ Wayne R. Rohde

Wayne R. Rohde  
Christopher Raleigh  
Kathryn Sobotta  
COZEN O'CONNOR  
1200 Nineteenth Street, NW  
Washington, D.C. 20036  
wrohde@cozen.com  
craleigh@cozen.com  
ksobotta@cozen.com

*Counsel for Ocean Carrier Equipment Management Association, Inc.; Consolidated Chassis Management, LLC.; CMA CGM S.A.; COSCO Shipping Lines Co. Ltd.; HMM Company Limited; Maersk A/S; MSC Mediterranean Shipping Company S.A.; Ocean Network Express Pte. Ltd.; Wan Hai Lines Ltd.; Zim Integrated Shipping Services; and co-counsel for Evergreen Line Joint Service Agreement, FMC No. 011982*

/s/ Paul M. Keane

Paul M. Keane  
Joseph De May  
CICHANOWICZ CALLAN KEANE & DE MAY, LLP  
50 Main Street  
White Plains, NY 10606  
pkeane@cckd-ny.com  
jdemay@cckd-ny.com

*Counsel for Evergreen Line Joint Service Agreement, FMC No. 011982*

/s/ Deana E. Rose

Deana E. Rose  
MANELLI SELTER PLLC  
1725 I Street, NW, Suite 300  
Washington, D.C. 20006  
drose@mdslaw.com

*Counsel for Yang Ming Marine Transport Corp.*

/s/ Gerald A. Morrissey

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Gerald A. Morrissey III  
Christopher Nolan  
HOLLAND & KNIGHT LLP  
800 17<sup>th</sup> Street NW, Suite 1100  
Washington, D.C. 20006  
gerald.morrissey@hklaw.com  
chris.noland@hklaw.com

*Counsel for Hapag-Lloyd AG*

# **EXHIBIT A**

**UNITED STATES OF AMERICA  
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

FMC Docket No. 20-14

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA CGM S.A., COSCO  
SHIPPING LINES CO. LTD., EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982,  
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK  
A/S, MSC MEDITERRANEAN SHIPPING  
COMPANY S.A., OCEAN NETWORK EXPRESS  
PTE. LTD., WAN HAI LINES LTD., YANG MING  
MARINE TRANSPORT CORP., AND ZIM  
INTEGRATED SHIPPING SERVICES,

Respondents.

**STIPULATION & ORDER OF CONFIDENTIALITY**

WHEREAS, the above-captioned Federal Maritime Commission proceeding (“Proceeding”) is likely to involve production of trade secrets, valuable commercial information, personal information, business and financial proprietary information, disclosure of which and use for any purpose other than in this Proceeding would cause specific prejudice or harm, such as annoyance, embarrassment, oppression, or undue burden or expense;

IT IS HEREBY STIPULATED AND AGREED, in good faith, by the undersigned counsel for the Parties that the following Order of Confidentiality shall be applicable to this Proceeding and shall govern all hard copy and electronic information, documents, and materials

produced or disclosed in relation to this Proceeding. These materials shall be referred to hereinafter as “Proceeding Material.”

**Definition of Confidential Information**

1. Each Producing Party shall have the right to designate information or Proceeding Material as “Confidential” when it reveals or reflects

- a. unpublished business, financial, research or marketing data, methods or plans, internal emails, memos, trade secrets, customer information, customer negotiations or operational or technical information;
- b. private or confidential personal information;
- c. other information of a nonpublic nature that a Party reasonably and in good faith believes to be commercially, competitively, or personally sensitive, or proprietary in nature entitled to protection under 46 CFR §502.141(j)(1) of the Rules of Practice and Procedure, or
- d. information that is not publicly-known, that is not in the public domain, or was previously known or in the possession of the Receiving Party, so long as the information was not known or in possession of the Receiving Party under any other obligation to maintain confidentiality or restriction on disclosure.

**Definition of Outside Counsel Eyes Only Information**

2. Each Producing Party shall have the right to designate information or Proceeding Material as Outside Counsel Eyes Only (“OCEO”) when it qualifies as “Confidential” as defined above and whose disclosure to anyone other than outside counsel has a substantial probability of jeopardizing the Parties’ competitive business interests or the competitive or privacy interests of the clients or individual Party in this Proceeding.

3. Information or Proceeding Material designated as “Confidential” or “Confidential OCEO” shall be referred to hereinafter as "Confidential Information."

**General Provisions**

4. All Parties designating Confidential Information and/or Confidential OCEO shall have a bona fide need for confidential treatment of information including trade secret or other confidential research, development, or commercial information pursuant to 46 CFR §502.141(j)(1)(vii).

5. The distribution and dissemination of any information designated as Confidential Information is limited to the following persons:

- a. counsel and co-counsel of record for any Party in this Proceeding including necessary paralegal, secretarial, and clerical personnel assisting counsel;
- b. any officer, manager, Board Member, or employee of either Party who may be consulted regarding this Proceeding;
- c. consultants or experts who are not employed by, or otherwise affiliated with, a Party in this Proceeding, and who are retained by a Party or its counsel to assist in the preparation of discovery, and/or this Proceeding;
- d. vendors retained by any of the Parties for the purpose of assisting with discovery, litigation support personnel, stenographers, and clerical employees whose duties and responsibilities require access to such materials; and
- e. Judge Wirth, the Federal Maritime Commission staff and personnel of the Commission.

6. The distribution and limitation of any information designated Confidential OCEO is limited to the following persons:

- a. outside counsel and co-counsel of record for any Party in this Proceeding including necessary paralegal, secretarial, and clerical personnel assisting counsel;
- b. consultants or experts who are not employed by, or otherwise affiliated with, a Party in this Proceeding, and who are retained by a Party or its counsel to assist in the preparation of discovery, and/or this Proceeding;
- c. vendors retained by any of the Parties for the purpose of assisting with discovery, litigation support personnel, stenographers, and clerical employees whose duties and responsibilities require access to such materials; and
- d. Judge Wirth, the Federal Maritime Commission staff and personnel of the Commission.

7. All persons authorized to receive and view Confidential Information shall take reasonable steps to secure any Confidential Information, and shall limit access to Confidential Information to those persons identified above in Paragraphs 5 or 6.

8. Persons identified in Paragraphs 5(c), (d) and 6(b), (c) shall read, agree to the terms of this Order of Confidentiality, and sign a Certification form annexed at Appendix A.

9. A Party shall immediately notify any inadvertent disclosure of Confidential Information in breach of this Order of Confidentiality, to the ALJ and the Producing Party counsel. After which, the Party shall take necessary steps to prevent further disclosures in breach of any of the provisions of this Order of Confidentiality.

10. The Parties shall either destroy all materials designated Confidential Information or return them to the original Producing Party at the Producing Party's expense within forty-five

(45) days of the final conclusion of this Proceeding either by settlement or final judgment, including exhaustion of all appeals.

### **Privileged and Protected Material**

11. The Parties preserve any and all privileges and exemptions including but not limited to attorney-client privilege and work product privilege, which apply to any and all Proceeding Material.

12. Inadvertent disclosure shall not be deemed as a waiver of any privilege or exemption in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure.

13. Within forty-eight (48) hours of the receipt of a written notice from a Party claiming inadvertent disclosure of privileged material, the Receiving Party shall return immediately any Proceeding Material deemed privileged by such letter, and the Receiving Party shall also delete and/or destroy any copies of such privileged or protected materials inadvertently produced by the Producing Party identified in such letter, subject to and without waiving the Receiving Party's rights to challenge the disclosures as inadvertent or the designation as confidential or privileged in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure.

### **Use of Confidential Information in Commission Hearings**

14. Confidential Information disclosed to the Commission and ALJ in papers including exhibits, shall be labeled in accordance with 46 CFR §502.5.

15. The provisions of this Order of Confidentiality shall govern the Proceeding, including discovery, and shall not affect the conduct of the ALJ. The ALJ shall order an

appropriate procedure for the use of the Confidential Information at or during the course of the Proceeding pursuant to 46 CFR §502.141(j)(1).

### **Designating Protected Material**

16. Documents containing Confidential Information as defined in Paragraphs 7, 8, and 9 shall be marked with the word “CONFIDENTIAL” or “CONFIDENTIAL OCEO” on each page of that document that contains such information.

17. Where a Party produces Proceeding Material in electronic form, it may make the confidentiality designation by a letter which identifies the Bates Numbers of the electronic documents which comprise Confidential Information.

18. Depositions may be designated as Confidential Information by (i) stating orally on the record that the information is Confidential Information on the day the testimony is given, or (ii) sending written notice designating testimony as Confidential Information within thirty (30) days after receipt of the official deposition transcript or deposition copy.

19. Any Party that designates information or items for protection under this Order of Confidentiality must take care to limit any such designation to specific material that qualifies.

20. Once the Receiving Party has notice that the Producing Party has designated Proceeding Material as Confidential Information, the Receiving Party shall treat the designated materials as Confidential Information in accordance with this Order of Confidentiality regardless of how much time has passed since the Confidential Information was first disclosed or produced.

### **Challenging Confidential Designations**

21. Any Party may challenge a designation of “Confidential” or “Confidential OCEO” at any time that is consistent with the Commission’s Scheduling Order.

22. The Party challenging the designation must object with particularity and give a complete explanation by letter to the Producing Party Counsel.

23. If the Parties are unable to resolve the challenge, then the Producing Party may move the ALJ for a protective order or the objecting party Counsel may move the ALJ to challenge the designation. The Proceeding Material, however, shall continue to be deemed Confidential Information until the ALJ rules on any such motion.

24. If a Producing Party fails to seek a protective order to uphold its designation, any disputed Proceeding Material will lose its Confidential designation thirty (30) days after the date of the letter referred to in Paragraph 21.

#### **Reservation of Rights**

25. The Order of Confidentiality shall not prevent any Party from disclosing Confidential Information to any person as it deems appropriate, to adhere to the Commission's guidelines for a just and speedy Proceeding. Any such disclosure shall not be deemed a violation or waiver of the Party's obligations under this Order of Confidentiality.

26. The ALJ shall retain jurisdiction of the Parties, even after termination of this Proceeding, regarding any dispute between them on the improper use of Confidential information disclosed under protection of this Order of Confidentiality.

27. Disclosure of Confidential Information Pursuant to Legal Process. If Confidential Information in the possession of the Receiving Party is subpoenaed or sought pursuant to discovery or other legal process, the Party to whom the request has been made or an order directed shall promptly give written notice of such request to the Party that produced the information. No Party shall disclose another Party's Confidential Information without first giving that Party notice for an opportunity to seek an order governing disclosure of the requested

information. The Party that produced the information shall have the sole burden of defending against such request.

DATED:

# APPENDIX A

**UNITED STATES OF AMERICA  
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA CGM S.A., COSCO  
SHIPPING LINES CO. LTD., EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982,  
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK  
A/S, MSC MEDITERRANEAN SHIPPING  
COMPANY S.A., OCEAN NETWORK EXPRESS  
PTE. LTD., WAN HAI LINES LTD., YANG MING  
MARINE TRANSPORT CORP., AND ZIM  
INTEGRATED SHIPPING SERVICES,

Respondents.

**DOCKET NO. 20-14**

**CERTIFICATION TO BE BOUND BY STIPULATION  
AND ORDER OF CONFIDENTIALITY**

I, \_\_\_\_\_ state that

1. My current home address is
2. My present occupation and/or job description is
3. My present employer is
4. The principal address of my employer is
5. I have carefully read and understand the provisions of the Stipulation and Order of Confidentiality executed by the Parties in the above-referenced Proceeding, and I will comply with all provisions of the Stipulation and Order of Confidentiality.

6. I will hold in confidence and not disclose to anyone not qualified under Paragraphs 5 or 6 of the Stipulation and Order of Confidentiality any documents and/or information designated Confidential Information.
7. I will limit use of Confidential Information disclosed to me solely for the purposes of this Proceeding.
8. At the conclusion of the above-referenced Proceeding, I will return all Confidential Information, including any summaries, abstracts, and indices thereof, that come into my possession or destroy all such Confidential Information.

I declare under penalty of perjury that the forgoing is true and correct.

DATE:

---

Signature

---

Printed Name

# Exhibit 2

**BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA CGM S.A., COSCO  
SHIPPING LINES CO. LTD., EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982,  
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK  
A/S, MSC MEDITERRANEAN SHIPPING  
COMPANY S.A., OCEAN NETWORK EXPRESS  
PTE. LTD., WAN HAI LINES LTD., YANG MING  
MARINE TRANSPORT CORP., AND ZIM  
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

**SUBPOENA DUCES TECUM TO A NON-PARTY**

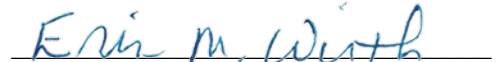
**TO: INTERPOOL, INC. DBA TRAC INTERMODAL  
GREGG F. CARPENE, GENERAL COUNSEL  
INTERPOOL, INC.  
750 COLLEGE ROAD EAST  
PRINCETON , NJ 08540**

You are hereby commanded to produce to the Complainant, the Intermodal Motor Carriers Conference of the American Trucking Associations, Inc., the documents requested and in the manner set forth in the Definitions, Instructions and Document Requests found in "Exhibit A," attached hereto. This production must take place within twenty (20) days after service of this

subpoena. Failure to comply with this subpoena may result in a finding of contempt and other penalties.

You have the right to object, by motion and with notice to the party requesting the subpoena, at any time prior to the date set forth in this subpoena for compliance. See 46 C.F.R. § 502.132. Should you choose to object, you should communicate in writing your reasons for your objection with respect to each item or category to which you object. If production is withheld on a claim that the contents at issue are privileged or subject to protection, that claim shall be made expressly and shall be supported by a description that is sufficient to enable the demanding party to contest the claim. The parties in this case are subject to a Stipulation and Order of Confidentiality, attached hereto as “Exhibit B.”

Signed this 15th day of March, 2021.

  
Erin M. Wirth  
Administrative Law Judge

## **EXHIBIT A**

**TO: INTERPOOL, INC. DBA TRAC INTERMODAL  
GREGG F. CARPENE, GENERAL COUNSEL  
INTERPOOL, INC.  
750 COLLEGE ROAD EAST  
PRINCETON , NJ 08540**

Please produce the Documents requested below electronically, either by a secure online file transfer service or by hard drive. If producing by hard drive, please deliver to Constantine Cannon LLP, 335 Madison Avenue 9<sup>th</sup> Fl., New York, NY 10017. Documents must be produced in accordance with the Definitions and Instructions set forth below.

### **DEFINITIONS**

1. The following rules of construction should apply to all discovery requests:
  - a. “All” should be construed to include the collective as well as the singular and shall mean “each,” “any,” and “every.” The terms “any,” “all,” “each” and “every” should be understood in either their most or least inclusive sense as necessary to bring within the scope of the Request all responses that might otherwise be construed to be outside of the scope.
  - b. “And” and “or” should be construed so as to require the broadest possible response. If, for example, a request calls for information about “A or B” or “A and B,” You should produce all information about A and all information about B, as well as all information about A and B collectively. In other words, “or” and “and” should be read as “and/or.”
  - c. “Any” shall be construed to mean “any and all.”

- d. “Including” shall be construed to mean “without limitation.” “Including” is used to emphasize certain types of documents requested and should not be construed as limiting the request in any way.
  - e. The use of the singular form of any word includes the plural and vice versa.
  - f. Each of the words “concerning,” “reflecting,” “relating,” “supporting,” “negating,” “evidencing” and “referring” shall be defined to include the common meanings of all those terms and shall include indirect as well as direct references to the subject matter set forth in the Request.
2. “Additional Chassis Contributor” should be construed to be a chassis contributor to the POP other than Interpool, Inc. DBA TRAC Intermodal, Direct ChassisLink Inc., and Flexi-Van Leasing, Inc.
3. “CH” refers to carrier haulage, which is a carriage arrangement whereby a Respondent Ocean Carrier bears the financial responsibility for container delivery, regardless of whether the container movement is under a through rate or contract. CH includes container delivery sometimes referred to as an MH exception.
4. “CCM” means Respondent Consolidated Chassis Management, LLC, and its affiliates, parents, subsidiaries, divisions, predecessors, and successors.
5. “Communication” or “Communications” means the oral or written transmittal of information of any kind (in the form of facts, ideas, inquiries, or otherwise) by any means, including any face to face, telephonic, video or other virtual meeting, conversation, discussion, conference, correspondence, message, or other written, electronic or oral transmission, exchange, or transfer of information in any form between two or more persons, including in person or by telephone, facsimile, telegraph, telex, e-mail, text message, instant message, collaboration

software tools such as Slack, or other medium. The phrase “communication between” is defined to include instances where one party communicates with another party but that other party does not necessarily respond.

6. “Document” or “Documents” has the broadest meaning possible, including all Communications. “Document” or “Documents” includes all “writings,” “sound recordings,” “data or data compilations” and “photographs” as those terms are defined in 46 C.F.R. § 502.146. *See also* 46 C.F.R. §§ 502.12, 502.141 & 502.204 (incorporating Federal Rule of Civil Procedure 34 and Rule 1001 of the Federal Rules of Evidence). Without limiting the generality of the foregoing, the term “Documents” includes both hard copy documents as well as electronically stored data files. Regarding hard copy documents, the term “Documents” includes all written or printed matter of any kind, including the originals and all non-identical copies thereof (whether different from the originals by reason of any interlineation, receipt stamp, indication of copies sent or received, or other notation made on such copies or otherwise), including memoranda, notes, opinions, compilations, chronicles, minutes, agenda, notations of any sort of conversations, contracts, agreements, reports, summaries, teletypes, telefax, thermafax, confirmations, inter-office and intra-office Communications, printed e-mail, printed text messages, printed instant messages, all written or graphic records of representations of any kind, and all records of representations of any kind. Regarding electronically stored data files, the term “Documents” includes correspondence, memoranda, legal pleadings, calendars, diaries, travel records, summaries, records of telephone conversations, telegrams, teletypes, telefax, thermafax, confirmations, notes, reports, compilations, notebooks, work papers, graphs, charts, blueprints, books, pamphlets, brochures, circulars, manuals, instructions, ledgers, drawings, sketches, photographs, videotapes, audiotapes, film and sound reproductions, e-mails, instant

messages, text messages, collaboration software tools (including Slack), internal or external web sites, audio or video discs, data on magnetic or optical storage media (*e.g.*, servers, storage area networks, hard drives, backup tapes, CDs, DVDs, Bluray, DVD-HD thumb flash drives, floppy disks or any other type of portable storage device, etc.) stored as an “active” or backup file, in its native format, computer files, discs and drives, sales, advertising and promotional literature, agreements, stored recordings, minutes or other records of meetings, computer data (including information or programs stored in a computer, whether or not ever printed out or displayed) and all drafts, alterations, modifications, changes and amendments of any of the foregoing, all written or graphic records of representations of any kind, and all mechanical or electronic data, records of representations of any kind, including photographs, microfiche, microfilm, videotape, records and motion pictures, and electronic, mechanical, or electric records or representations, tapes, cassettes, discs, magnetic cards, recordings, and cloud storage services.

7. “Electronically Stored Information,” abbreviated as “ESI” has the same meaning and scope as it has in the FMC’s Rules of Practice, as informed by the Federal Rules of Civil Procedure, and includes the following:

- a. structured and unstructured data, as those terms are defined in The Sedona Conference Glossary, available at [www.thesedonaconference.org/publications](http://www.thesedonaconference.org/publications);
- b. activity listings of electronic mail receipts and/or transmittals;
- c. output resulting from the use of any software program, including word processing documents, spreadsheets, database files, charts, graphs and outlines, electronic mail, text messages (SMS, MMS or TMS), instant messages (such as iMessage, WhatsApp, WeChat, Google Hangout or similar program) or bulletin board

programs, operating systems, source code, PRF files, PRC files, batch files, ASCII files, and all miscellaneous media on which they reside and regardless of whether said electronic data exists in an active file, a deleted file, or file fragment;

- d. any and all items stored on computer memories, hard disks, floppy disks, CD discs, DVD discs, flash drives, thumb drives, memory cards, magnetic tape, microfiche, or in any other vehicle for digital data storage and/or transmittal, such as a personal digital assistant (e.g., iPhone, Android, Blackberry, Smart Phone or similar device) and file folder tabs, and/or containers and labels appended to, or relating to, any physical storage device associated with each original and/or copy of all documents requested herein;
- e. any and all items stored on voice-mail systems, websites, company intranet sites, chat rooms and social networking websites (e.g., Facebook, Twitter, LinkedIn, and other social websites listed at [http://en.wikipedia.org/wiki/List\\_of\\_social\\_networking\\_websites](http://en.wikipedia.org/wiki/List_of_social_networking_websites)); and
- f. any and all data, data compilations, and data analyses.

8. An “inland intermodal terminal” means rail terminals, container yards, freight stations, intermodal equipment storage areas, container depots, and similar facilities in the United States.

9. “MH” refers to merchant haulage, which is a carriage arrangement whereby the shipper or designated motor carrier bears the financial responsibility for container delivery. MH does not include carrier arrangements, sometimes called an MH exception, whereby a Respondent Ocean Carrier bears the financial responsibility for container delivery even though such delivery is not under a through rate or contract.

10. “Respondent Ocean Carriers” are CMA CGM S.A.; COSCO Shipping Lines Co. LTD.; Evergreen Line Joint Service Agreement, FMC Agreement No. 011982; Hapag-Lloyd AG; HMM Co. Ltd.; Maersk a/s; MSC Mediterranean Shipping Company S.A.; Ocean Network Express Pte. Ltd.; Wan Hai Lines Ltd.; Yang Ming Marine Transport Corp.; and Zim Integrated Shipping Services.

11. “Person” or “Persons” includes individuals, corporations, partnerships, limited partnerships, unincorporated associations, and all other governmental and non-governmental entities.

12. “POP” is the Pool of Pools at the Port of Los Angeles and the Port of Long Beach operated by Interpool, Inc. DBA TRAC Intermodal, Direct ChassisLink Inc., and Flexi-Van Leasing, Inc. and their affiliates.

13. “You” or “Yours” means Interpool, Inc. and its affiliates, parents, subsidiaries, divisions, predecessors, successors and DBAs, including TRAC Intermodal.

### **INSTRUCTIONS**

1. Except as to Documents and things as to which You assert a claim of privilege or other exemption from disclosure, furnish all Documents or things in Your actual or constructive possession, custody or control, or known or available to You, regardless of the physical location of the Documents, or whether such Documents or things are possessed directly by You or by Your employees, agents, representatives, affiliates, subsidiaries, accountants, attorneys, investigators or consultants.

2. If any Document covered by these requests is withheld by reason of a claim of attorney-client privilege, attorney work product protection, or any other privilege or protection, please furnish a log providing the following information with respect to each such withheld

document: date, author, recipients, general subject matter sufficient to make a prima facie determination whether the asserted privilege has been properly invoked, and the legal basis upon which the Document has been withheld.

3. If any requested Document cannot be produced in full, You are to produce it to the extent possible, indicating which Document, or portion of such Document, is being withheld, and the reason that it is being withheld.

4. If production of any portion of a Document is required pursuant to these Requests, produce the entirety of that Document.

5. Documents not otherwise responsive to these Requests shall be produced if such Documents mention, discuss, refer to, or explain the Documents that are called for by these Requests, or if such Documents are attached to Documents called for by these Requests and constitute routing slips, transmittal memoranda, letters, cover sheets, comments, evaluation or similar materials.

6. All Documents shall be produced in the same order as they are kept or maintained by You in the ordinary course of Your business. If any Documents have been removed from the files in which they were found for purposes of producing them in response to these Requests, indicate for each Document the file(s) from which the Document(s) was (or were) originally located.

7. If a Document once existed and has subsequently been lost, destroyed, or is otherwise missing, please provide sufficient information to identify the Document and state the details concerning its loss.

8. With respect to any Document maintained or stored electronically, please harvest it in a manner that maintains the integrity and readability of all data, including all metadata.

9. Unless otherwise agreed, all ESI should be produced in native format in the original electronic file format(s) of the Documents or by electronic file transfer. Specifically, and in no way limiting the generality of the foregoing, presentations, such as PowerPoint presentations, and data compilations, such as Excel spreadsheets, shall be produced in native format.

10. Data called for by this Request must be submitted electronically in a reasonably usable compilation that will allow IMCC to access the information it contains. For IMCC to be able to access and interpret data, You must provide, for each database, a Data Dictionary that includes, for each table in the database:

- a. the name of the table;
- b. a general description of the information contained;
- c. the size in both number of records and megabytes;
- d. a list of fields;
- e. the format, including variable type and length, of each field;
- f. a definition for each field as it is used by You, including the meanings of all codes that can appear as field values;
- g. the fields that are primary keys for the purpose of identifying a unique observation;
- h. the fields that are foreign keys for the purpose of joining tables; and
- i. an indication of which fields are populated.

11. Please produce all Documents maintained or stored electronically in native, electronic format with all relevant metadata intact. Encrypted or password-protected Documents should be produced in a form permitting them to be reviewed.

12. Please organize electronic Documents produced for inspection in the same manner that You store them (e.g., if maintained by a custodian, such as e-mail residing on an e-mail server, please organize Documents for production by custodian; if maintained as a subfolder of “My Documents” on a custodian’s hard drive, please organize Documents for production by custodian with path information preserved, etc.).

13. Documents attached to each other should not be separated, including hard-copy versions of Documents attached to hard-copy printouts of e-mails produced pursuant to these Requests.

14. Documents maintained or stored in paper, hard-copy form shall be produced as searchable .PDF (*i.e.*, portable Document format files with embedded text) and in an appropriate and usable manner (*e.g.*, by copying such data onto an external hard drive).

15. These requests require production of Documents in the same form and same order as they are kept in the usual course of business or organized and labeled to correspond with the requests set forth below.

16. Documents stored as electronic data on magnetic, optical, or other storage media as “active” or “backup” files shall be produced in their native formats with any associated metadata.

17. To the extent responsive Documents reside on databases and other such systems and files, You are requested to produce the relevant database in useable form and/or permit access for inspection, review and extraction of responsive information.

18. Each document request, and each subpart thereof, shall be separately set forth and accorded a separate answer. Each response shall first set forth verbatim the document request to which it is responsive, followed by Your response.

19. No part of a document request shall be left unanswered merely because an objection was interposed to another part of the document request.

20. If You object to any document request or subpart thereof, the objection shall state with specificity all grounds. Any ground not stated shall be waived.

21. If any objection is made to any document request, all Documents covered by that request but not subject to the objection should be produced.

22. If any information specified in this Request appears on any page of any document, all pages of the document shall be produced in response to this Request.

23. These requests seek Documents concerning the provision of chassis in the United States, in whole or in part.

## **DOCUMENT REQUESTS**

### **REQUEST FOR PRODUCTION NO. 1.**

Documents and Communications relating to contracts or agreements with Respondent Ocean Carriers (and any amendments thereto) to provide chassis for the transport of Respondent Ocean Carrier containers, including (1) Your responses to requests for proposals from Respondent Ocean Carriers and negotiations thereof, (2) Your proposals to Respondent Ocean Carriers related to the withdrawal of Respondent Ocean Carriers from CCM-managed chassis pools and negotiations thereof, (3) Your analyses of chassis pricing for CH container movements and the effect on such pricing from designating or not designating You as the preferred/default provider for MH container movements and/or allowing or not allowing motor carrier chassis choice for MH movements, and (4) Your analyses of the effects of chassis interoperability or non-interoperability with other chassis providers or chassis pools at ports or inland intermodal terminals on availability operational efficiency and quality of chassis pricing. Documents

responsive to this request include Documents submitted to Your board of directors, management, and/or owners, such as strategy memoranda, presentations, and business plans, including with respect to topics (1) – (4). The Relevant Time Period for this Request is from January 1, 2011 to the present.

## **REQUEST FOR PRODUCTION NO. 2.**

Documents and/or data sufficient to show for each port or inland intermodal terminal at which You provide chassis for Respondent Ocean Carriers: (1) the number of Respondent Ocean Carrier container movements that utilize chassis provided by You that are CH movements; (2) the number of Respondent Ocean Carrier container movements that utilize chassis provided by You that are MH movements; (3) the number of Respondent Ocean Carrier MH container movements that do not utilize a chassis provided under Your contracts with any Respondent Ocean Carrier; (4); the average and median age of Your chassis; and (5) Your daily rental prices and amendments and updates thereto for chassis used in MH movements. Documents and/or data responsive to categories (1), (2), and (3) may be provided in a format that aggregates such data no less frequently than monthly by Respondent Ocean Carrier. Documents and/or data responsive to category (4) may be provided in a format that aggregates such data no less frequently than semiannually by port and inland intermodal terminal. The Relevant Time Period for this Request is from January 1, 2015 to the present.

## **REQUEST FOR PRODUCTION NO. 3.**

Documents sufficient to show Your discounts, if any, below daily rental prices provided to motor carriers for chassis to be utilized for MH movements at each port or inland intermodal terminal at which You provide chassis for Respondent Ocean Carriers, including Your reasons and strategy for providing such discounts. Documents responsive to this request include

Documents submitted to Your board of directors, management, and/or owners, including strategy memoranda, presentations, and business plans and contracts including such discounts, if any.

The Relevant Time Period for this Request is from January 1, 2015 to the present.

**REQUEST FOR PRODUCTION NO. 4.**

Documents and Communications related to Flexi-Van Leasing, Inc. and Direct ChassisLink, Inc.'s January 2014 request for a Department of Justice Antitrust Division Business Review Letter.

**REQUEST FOR PRODUCTION NO. 5.**

Documents and Communications relating to the FMC's 2019 Memphis Study Supply Chain Innovation Team in Fact Finding Investigation No. 28.

**REQUEST FOR PRODUCTION NO. 6.**

Documents sufficient to show the operation of the POP, including (1) the system for financial settlement among participating POP chassis contributors, (2) the billing for chassis usage in the POP by chassis contributors, (3) the quality of chassis contributed to the POP and maintenance of roadability, (4) the eligibility of an Additional Chassis Contributor to participate as a chassis contributor to the POP, (5) the entities responsible for the administration of the POP, and (6) any decisions or votes by participants in the POP to allow or not allow the institution of motor carrier chassis choice on MH movements. Documents responsive to this request include agreements, manuals, and procedures, including any amendments thereto. The Relevant Time Period for this Request is from January 1, 2014 to the present.

**REQUEST FOR PRODUCTION NO. 7.**

Documents and Communications relating to the establishment and continuation of the eligibility requirement that Additional Chassis Contributors to the POP must have a contract with

an ocean carrier (or other carrier by water) and relating to the acceptance or rejection of Additional Chassis Contributors to the POP. The Relevant Time Period for this Request is from January 1, 2014 to the present.

**REQUEST FOR PRODUCTION NO. 8.**

Documents sufficient to show Your analyses of the benefits and harms of establishing and/or disestablishing interoperable chassis pools at each port or inland intermodal terminal at which You provide chassis for Respondent Ocean Carriers, including pools managed by CCM. Documents responsive to this request include Documents submitted to Your board of directors, management, and/or owners, including strategy memoranda, presentations, and business plans. The Relevant Time Period for this Request is from January 1, 2015 to the present.

**REQUEST FOR PRODUCTION NO. 9.**

Documents sufficient to show Your annual revenues from each Respondent Ocean Carriers for CH and/or MH movements at each port, inland intermodal terminal, and/or geographical region served by You. The Relevant Time Period for this Request is from January 1, 2011 to the present.

**REQUEST FOR PRODUCTION NO. 10.**

Documents sufficient to show Your organization, ownership, and reporting responsibilities for chassis at each port and inland intermodal terminal at which You provide chassis, including the persons responsible for chassis provisioning and for negotiating contracts with Respondent Ocean Carriers. The Relevant Time period for such requests is from January 1, 2019 to the present.

## **EXHIBIT B**

**FEDERAL MARITIME COMMISSION**  
**Office of Administrative Law Judges**

INTERMODAL MOTOR CARRIERS CONFERENCE, AMERICAN  
TRUCKING ASSOCIATIONS, INC., *Complainant*

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT ASSOCIATION  
INC.; CONSOLIDATED CHASSIS MANAGEMENT, LLC;  
CMA CGM S.A.; COSCO SHIPPING LINES Co. LTD.;  
EVERGREEN LINE JOINT SERVICE AGREEMENT, FMC No.  
011982; HAPAG-LLOYD AG; HMM Co. LTD.; MAERSK A/S;  
MSC MEDITERRANEAN SHIPPING COMPANY S.A.;  
OCEAN NETWORK EXPRESS PTE. LTD.; WAN HAI LINES LTD.;  
YANG MING MARINE TRANSPORT CORP.; AND  
ZIM INTEGRATED SHIPPING SERVICES, *Respondents*.

**DOCKET NO. 20-14**

Served: March 4, 2021

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**ORDER OF:** Erin M. WIRTH, *Chief Administrative Law Judge*.

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**ORDER ENTERING STIPULATION**

On March 1, 2021, the parties filed a joint motion seeking entry of a stipulation and order of confidentiality with exhibit A attaching the stipulation and order of confidentiality ("Stipulation"). The parties jointly request that the Stipulation be entered as an order in this matter.

The joint request is **GRANTED**, and it is hereby **ORDERED** that the Stipulation shall be entered as an order in this proceeding.



---

Erin M. Wirth  
Chief Administrative Law Judge

**UNITED STATES OF AMERICA  
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA CGM S.A., COSCO  
SHIPPING LINES CO. LTD., EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982,  
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK  
A/S, MSC MEDITERRANEAN SHIPPING  
COMPANY S.A., OCEAN NETWORK EXPRESS  
PTE. LTD., WAN HAI LINES LTD., YANG MING  
MARINE TRANSPORT CORP., AND ZIM  
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

**JOINT MOTION FOR ENTRY OF STIPULATION  
AND ORDER OF CONFIDENTIALITY**

The Parties in the above-captioned Proceeding, Complainant, Intermodal Motor Carriers Conference of the American Trucking Associations, Inc. and Respondents, Ocean Carrier Equipment Management Association, Inc. (“OCEMA”), Consolidated Chassis Management, LLC (“CCM”), CMA CGM S.A. (“CMA”), COSCO Shipping Lines (“COSCO”), Evergreen Line Joint Service Agreement, FMC No. 011982 (“Evergreen”), Hapag-Lloyd AG (“Hapag-Lloyd”), HMM Co. Ltd. (“HMM”), Maersk a/s (“Maersk”), MSC Mediterranean Shipping Company S.A. (“MSC”), Ocean Network Express Pte. Ltd. (“ONE”), Wan Hai Lines Ltd. (“Wan Hai”), Yang Ming Marine Transport Corp. (“Yang Ming”), and Zim Integrated Shipping Services (“Zim”) (collectively “the Parties”) hereby move the Commission to enter the

Stipulation and Order of Confidentiality executed by the Parties and attached hereto as Exhibit

A. The Parties have jointly drafted the attached and agree to be bound by all of the terms contained therein.

WHEREFORE, the Parties request that the Commission grant this motion for entry of the submitted Stipulation and Order of Confidentiality.

Respectfully submitted,

DATED: March 1, 2021

/s/ W. Stephen Cannon

W. Stephen Cannon  
David D. Golden  
Seth D. Greenstein  
Richard O. Levine  
J. Wyatt Fore  
Osob M. Samantar  
CONSTANTINE CANNON LLP  
1001 Pennsylvania Avenue, NW  
Suite 1300N  
Washington, DC 20004  
Phone: 202-204-3500  
scannon@constantinecannon.com

Richard Pianka  
American Trucking Associations, Inc.  
950 N. Glebe Rd. Ste. 210  
Arlington, VA 22203  
(703) 838-1889  
rpianka@trucking.org

*Counsel for Complainant  
Intermodal Motor Carriers Conference of the American Trucking Associations*

/s/ Wayne R. Rohde

Wayne R. Rohde  
Christopher Raleigh  
Kathryn Sobotta  
COZEN O'CONNOR  
1200 Nineteenth Street, NW  
Washington, D.C. 20036  
wrohde@cozen.com  
craleigh@cozen.com  
ksobotta@cozen.com

*Counsel for Ocean Carrier Equipment Management Association, Inc.; Consolidated Chassis Management, LLC.; CMA CGM S.A.; COSCO Shipping Lines Co. Ltd.; HMM Company Limited; Maersk A/S; MSC Mediterranean Shipping Company S.A.; Ocean Network Express Pte. Ltd.; Wan Hai Lines Ltd.; Zim Integrated Shipping Services; and co-counsel for Evergreen Line Joint Service Agreement, FMC No. 011982*

/s/ Paul M. Keane

Paul M. Keane  
Joseph De May  
CICHANOWICZ CALLAN KEANE & DE MAY, LLP  
50 Main Street  
White Plains, NY 10606  
pkeane@cckd-ny.com  
jdemay@cckd-ny.com

*Counsel for Evergreen Line Joint Service Agreement, FMC No. 011982*

/s/ Deana E. Rose

Deana E. Rose  
MANELLI SELTER PLLC  
1725 I Street, NW, Suite 300  
Washington, D.C. 20006  
drose@mdslaw.com

*Counsel for Yang Ming Marine Transport Corp.*

/s/ Gerald A. Morrissey

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Gerald A. Morrissey III  
Christopher Nolan  
HOLLAND & KNIGHT LLP  
800 17<sup>th</sup> Street NW, Suite 1100  
Washington, D.C. 20006  
gerald.morrissey@hklaw.com  
chris.noland@hklaw.com

*Counsel for Hapag-Lloyd AG*

# **EXHIBIT A**

**UNITED STATES OF AMERICA  
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

FMC Docket No. 20-14

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA CGM S.A., COSCO  
SHIPPING LINES CO. LTD., EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982,  
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK  
A/S, MSC MEDITERRANEAN SHIPPING  
COMPANY S.A., OCEAN NETWORK EXPRESS  
PTE. LTD., WAN HAI LINES LTD., YANG MING  
MARINE TRANSPORT CORP., AND ZIM  
INTEGRATED SHIPPING SERVICES,

Respondents.

**STIPULATION & ORDER OF CONFIDENTIALITY**

WHEREAS, the above-captioned Federal Maritime Commission proceeding (“Proceeding”) is likely to involve production of trade secrets, valuable commercial information, personal information, business and financial proprietary information, disclosure of which and use for any purpose other than in this Proceeding would cause specific prejudice or harm, such as annoyance, embarrassment, oppression, or undue burden or expense;

IT IS HEREBY STIPULATED AND AGREED, in good faith, by the undersigned counsel for the Parties that the following Order of Confidentiality shall be applicable to this Proceeding and shall govern all hard copy and electronic information, documents, and materials

produced or disclosed in relation to this Proceeding. These materials shall be referred to hereinafter as “Proceeding Material.”

**Definition of Confidential Information**

1. Each Producing Party shall have the right to designate information or Proceeding Material as “Confidential” when it reveals or reflects

- a. unpublished business, financial, research or marketing data, methods or plans, internal emails, memos, trade secrets, customer information, customer negotiations or operational or technical information;
- b. private or confidential personal information;
- c. other information of a nonpublic nature that a Party reasonably and in good faith believes to be commercially, competitively, or personally sensitive, or proprietary in nature entitled to protection under 46 CFR §502.141(j)(1) of the Rules of Practice and Procedure, or
- d. information that is not publicly-known, that is not in the public domain, or was previously known or in the possession of the Receiving Party, so long as the information was not known or in possession of the Receiving Party under any other obligation to maintain confidentiality or restriction on disclosure.

**Definition of Outside Counsel Eyes Only Information**

2. Each Producing Party shall have the right to designate information or Proceeding Material as Outside Counsel Eyes Only (“OCEO”) when it qualifies as “Confidential” as defined above and whose disclosure to anyone other than outside counsel has a substantial probability of jeopardizing the Parties’ competitive business interests or the competitive or privacy interests of the clients or individual Party in this Proceeding.

3. Information or Proceeding Material designated as “Confidential” or “Confidential OCEO” shall be referred to hereinafter as "Confidential Information."

### **General Provisions**

4. All Parties designating Confidential Information and/or Confidential OCEO shall have a bona fide need for confidential treatment of information including trade secret or other confidential research, development, or commercial information pursuant to 46 CFR §502.141(j)(1)(vii).

5. The distribution and dissemination of any information designated as Confidential Information is limited to the following persons:

- a. counsel and co-counsel of record for any Party in this Proceeding including necessary paralegal, secretarial, and clerical personnel assisting counsel;
- b. any officer, manager, Board Member, or employee of either Party who may be consulted regarding this Proceeding;
- c. consultants or experts who are not employed by, or otherwise affiliated with, a Party in this Proceeding, and who are retained by a Party or its counsel to assist in the preparation of discovery, and/or this Proceeding;
- d. vendors retained by any of the Parties for the purpose of assisting with discovery, litigation support personnel, stenographers, and clerical employees whose duties and responsibilities require access to such materials; and
- e. Judge Wirth, the Federal Maritime Commission staff and personnel of the Commission.

6. The distribution and limitation of any information designated Confidential OCEO is limited to the following persons:

- a. outside counsel and co-counsel of record for any Party in this Proceeding including necessary paralegal, secretarial, and clerical personnel assisting counsel;
- b. consultants or experts who are not employed by, or otherwise affiliated with, a Party in this Proceeding, and who are retained by a Party or its counsel to assist in the preparation of discovery, and/or this Proceeding;
- c. vendors retained by any of the Parties for the purpose of assisting with discovery, litigation support personnel, stenographers, and clerical employees whose duties and responsibilities require access to such materials; and
- d. Judge Wirth, the Federal Maritime Commission staff and personnel of the Commission.

7. All persons authorized to receive and view Confidential Information shall take reasonable steps to secure any Confidential Information, and shall limit access to Confidential Information to those persons identified above in Paragraphs 5 or 6.

8. Persons identified in Paragraphs 5(c), (d) and 6(b), (c) shall read, agree to the terms of this Order of Confidentiality, and sign a Certification form annexed at Appendix A.

9. A Party shall immediately notify any inadvertent disclosure of Confidential Information in breach of this Order of Confidentiality, to the ALJ and the Producing Party counsel. After which, the Party shall take necessary steps to prevent further disclosures in breach of any of the provisions of this Order of Confidentiality.

10. The Parties shall either destroy all materials designated Confidential Information or return them to the original Producing Party at the Producing Party's expense within forty-five

(45) days of the final conclusion of this Proceeding either by settlement or final judgment, including exhaustion of all appeals.

### **Privileged and Protected Material**

11. The Parties preserve any and all privileges and exemptions including but not limited to attorney-client privilege and work product privilege, which apply to any and all Proceeding Material.

12. Inadvertent disclosure shall not be deemed as a waiver of any privilege or exemption in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure.

13. Within forty-eight (48) hours of the receipt of a written notice from a Party claiming inadvertent disclosure of privileged material, the Receiving Party shall return immediately any Proceeding Material deemed privileged by such letter, and the Receiving Party shall also delete and/or destroy any copies of such privileged or protected materials inadvertently produced by the Producing Party identified in such letter, subject to and without waiving the Receiving Party's rights to challenge the disclosures as inadvertent or the designation as confidential or privileged in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure.

### **Use of Confidential Information in Commission Hearings**

14. Confidential Information disclosed to the Commission and ALJ in papers including exhibits, shall be labeled in accordance with 46 CFR §502.5.

15. The provisions of this Order of Confidentiality shall govern the Proceeding, including discovery, and shall not affect the conduct of the ALJ. The ALJ shall order an

appropriate procedure for the use of the Confidential Information at or during the course of the Proceeding pursuant to 46 CFR §502.141(j)(1).

### **Designating Protected Material**

16. Documents containing Confidential Information as defined in Paragraphs 7, 8, and 9 shall be marked with the word “CONFIDENTIAL” or “CONFIDENTIAL OCEO” on each page of that document that contains such information.

17. Where a Party produces Proceeding Material in electronic form, it may make the confidentiality designation by a letter which identifies the Bates Numbers of the electronic documents which comprise Confidential Information.

18. Depositions may be designated as Confidential Information by (i) stating orally on the record that the information is Confidential Information on the day the testimony is given, or (ii) sending written notice designating testimony as Confidential Information within thirty (30) days after receipt of the official deposition transcript or deposition copy.

19. Any Party that designates information or items for protection under this Order of Confidentiality must take care to limit any such designation to specific material that qualifies.

20. Once the Receiving Party has notice that the Producing Party has designated Proceeding Material as Confidential Information, the Receiving Party shall treat the designated materials as Confidential Information in accordance with this Order of Confidentiality regardless of how much time has passed since the Confidential Information was first disclosed or produced.

### **Challenging Confidential Designations**

21. Any Party may challenge a designation of “Confidential” or “Confidential OCEO” at any time that is consistent with the Commission’s Scheduling Order.

22. The Party challenging the designation must object with particularity and give a complete explanation by letter to the Producing Party Counsel.

23. If the Parties are unable to resolve the challenge, then the Producing Party may move the ALJ for a protective order or the objecting party Counsel may move the ALJ to challenge the designation. The Proceeding Material, however, shall continue to be deemed Confidential Information until the ALJ rules on any such motion.

24. If a Producing Party fails to seek a protective order to uphold its designation, any disputed Proceeding Material will lose its Confidential designation thirty (30) days after the date of the letter referred to in Paragraph 21.

#### **Reservation of Rights**

25. The Order of Confidentiality shall not prevent any Party from disclosing Confidential Information to any person as it deems appropriate, to adhere to the Commission's guidelines for a just and speedy Proceeding. Any such disclosure shall not be deemed a violation or waiver of the Party's obligations under this Order of Confidentiality.

26. The ALJ shall retain jurisdiction of the Parties, even after termination of this Proceeding, regarding any dispute between them on the improper use of Confidential information disclosed under protection of this Order of Confidentiality.

27. Disclosure of Confidential Information Pursuant to Legal Process. If Confidential Information in the possession of the Receiving Party is subpoenaed or sought pursuant to discovery or other legal process, the Party to whom the request has been made or an order directed shall promptly give written notice of such request to the Party that produced the information. No Party shall disclose another Party's Confidential Information without first giving that Party notice for an opportunity to seek an order governing disclosure of the requested

information. The Party that produced the information shall have the sole burden of defending against such request.

DATED:

# APPENDIX A

**UNITED STATES OF AMERICA  
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA CGM S.A., COSCO  
SHIPPING LINES CO. LTD., EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982,  
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK  
A/S, MSC MEDITERRANEAN SHIPPING  
COMPANY S.A., OCEAN NETWORK EXPRESS  
PTE. LTD., WAN HAI LINES LTD., YANG MING  
MARINE TRANSPORT CORP., AND ZIM  
INTEGRATED SHIPPING SERVICES,

Respondents.

**DOCKET NO. 20-14**

**CERTIFICATION TO BE BOUND BY STIPULATION  
AND ORDER OF CONFIDENTIALITY**

I, \_\_\_\_\_ state that

1. My current home address is
2. My present occupation and/or job description is
3. My present employer is
4. The principal address of my employer is
5. I have carefully read and understand the provisions of the Stipulation and Order of Confidentiality executed by the Parties in the above-referenced Proceeding, and I will comply with all provisions of the Stipulation and Order of Confidentiality.

6. I will hold in confidence and not disclose to anyone not qualified under Paragraphs 5 or 6 of the Stipulation and Order of Confidentiality any documents and/or information designated Confidential Information.
7. I will limit use of Confidential Information disclosed to me solely for the purposes of this Proceeding.
8. At the conclusion of the above-referenced Proceeding, I will return all Confidential Information, including any summaries, abstracts, and indices thereof, that come into my possession or destroy all such Confidential Information.

I declare under penalty of perjury that the forgoing is true and correct.

DATE:

---

Signature

---

Printed Name

# Exhibit 3

**BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA CGM S.A., COSCO  
SHIPPING LINES CO. LTD., EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982,  
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK  
A/S, MSC MEDITERRANEAN SHIPPING  
COMPANY S.A., OCEAN NETWORK EXPRESS  
PTE. LTD., WAN HAI LINES LTD., YANG MING  
MARINE TRANSPORT CORP., AND ZIM  
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

**SUBPOENA DUCES TECUM TO A NON-PARTY**

**TO: FLEXI-VAN LEASING, INC.  
CORPORATION SERVICE COMPANY  
PRINCETON SOUTH CORPORATE CTR  
STE 160, 100 CHARLES EWING BLVD  
EWING, NJ 08628**

You are hereby commanded to produce to the Complainant, the Intermodal Motor Carriers Conference of the American Trucking Associations, Inc., the documents requested and in the manner set forth in Definitions, Instructions and Document Requests found in "Exhibit A," attached hereto. This production must take place within twenty (20) days after service of this

subpoena. Failure to comply with this subpoena may result in a finding of contempt and other penalties.

You have the right to object, by motion and with notice to the party requesting the subpoena, at any time prior to the date set forth in this subpoena for compliance. See 46 C.F.R. § 502.132. Should you choose to object, you should communicate in writing your reasons for your objection with respect to each item or category to which you object. If production is withheld on a claim that the contents at issue are privileged or subject to protection, that claim shall be made expressly and shall be supported by a description that is sufficient to enable the demanding party to contest the claim. The parties in this case are subject to a Stipulation and Order of Confidentiality, attached hereto as “Exhibit B.”

Signed this 15th day of March, 2021.

  
Erin M. Wirth  
Administrative Law Judge

## **EXHIBIT A**

**TO: FLEXI-VAN LEASING, INC.  
CORPORATION SERVICE COMPANY  
PRINCETON SOUTH CORPORATE CTR  
STE 160, 100 CHARLES EWING BLVD  
EWING, NJ 08628**

Please produce the Documents requested below electronically, either by a secure online file transfer service or by hard drive. If producing by hard drive, please deliver to Constantine Cannon LLP, 335 Madison Avenue 9<sup>th</sup> Fl., New York, NY 10017. Documents must be produced in accordance with the Definitions and Instructions set forth below.

### **DEFINITIONS**

1. The following rules of construction should apply to all discovery requests:
  - a. “All” should be construed to include the collective as well as the singular and shall mean “each,” “any,” and “every.” The terms “any,” “all,” “each” and “every” should be understood in either their most or least inclusive sense as necessary to bring within the scope of the Request all responses that might otherwise be construed to be outside of the scope.
  - b. “And” and “or” should be construed so as to require the broadest possible response. If, for example, a request calls for information about “A or B” or “A and B,” You should produce all information about A and all information about B, as well as all information about A and B collectively. In other words, “or” and “and” should be read as “and/or.”
  - c. “Any” shall be construed to mean “any and all.”

- d. “Including” shall be construed to mean “without limitation.” “Including” is used to emphasize certain types of documents requested and should not be construed as limiting the request in any way.
  - e. The use of the singular form of any word includes the plural and vice versa.
  - f. Each of the words “concerning,” “reflecting,” “relating,” “supporting,” “negating,” “evidencing” and “referring” shall be defined to include the common meanings of all those terms and shall include indirect as well as direct references to the subject matter set forth in the Request.
2. “Additional Chassis Contributor” should be construed to be a chassis contributor to the POP other than Interpool, Inc. DBA TRAC Intermodal, Direct ChassisLink Inc., and Flexi-Van Leasing, Inc.
3. “CH” refers to carrier haulage, which is a carriage arrangement whereby a Respondent Ocean Carrier bears the financial responsibility for container delivery, regardless of whether the container movement is under a through rate or contract. CH includes container delivery sometimes referred to as an MH exception.
4. “CCM” means Respondent Consolidated Chassis Management, LLC, and its affiliates, parents, subsidiaries, divisions, predecessors, and successors.
5. “Communication” or “Communications” means the oral or written transmittal of information of any kind (in the form of facts, ideas, inquiries, or otherwise) by any means, including any face to face, telephonic, video or other virtual meeting, conversation, discussion, conference, correspondence, message, or other written, electronic or oral transmission, exchange, or transfer of information in any form between two or more persons, including in person or by telephone, facsimile, telegraph, telex, e-mail, text message, instant message, collaboration

software tools such as Slack, or other medium. The phrase “communication between” is defined to include instances where one party communicates with another party but that other party does not necessarily respond.

6. “Document” or “Documents” has the broadest meaning possible, including all Communications. “Document” or “Documents” includes all “writings,” “sound recordings,” “data or data compilations” and “photographs” as those terms are defined in 46 C.F.R. § 502.146. *See also* 46 C.F.R. §§ 502.12, 502.141 & 502.204 (incorporating Federal Rule of Civil Procedure 34 and Rule 1001 of the Federal Rules of Evidence). Without limiting the generality of the foregoing, the term “Documents” includes both hard copy documents as well as electronically stored data files. Regarding hard copy documents, the term “Documents” includes all written or printed matter of any kind, including the originals and all non-identical copies thereof (whether different from the originals by reason of any interlineation, receipt stamp, indication of copies sent or received, or other notation made on such copies or otherwise), including memoranda, notes, opinions, compilations, chronicles, minutes, agenda, notations of any sort of conversations, contracts, agreements, reports, summaries, teletypes, telefax, thermafax, confirmations, inter-office and intra-office Communications, printed e-mail, printed text messages, printed instant messages, all written or graphic records of representations of any kind, and all records of representations of any kind. Regarding electronically stored data files, the term “Documents” includes correspondence, memoranda, legal pleadings, calendars, diaries, travel records, summaries, records of telephone conversations, telegrams, teletypes, telefax, thermafax, confirmations, notes, reports, compilations, notebooks, work papers, graphs, charts, blueprints, books, pamphlets, brochures, circulars, manuals, instructions, ledgers, drawings, sketches, photographs, videotapes, audiotapes, film and sound reproductions, e-mails, instant

messages, text messages, collaboration software tools (including Slack), internal or external web sites, audio or video discs, data on magnetic or optical storage media (*e.g.*, servers, storage area networks, hard drives, backup tapes, CDs, DVDs, Bluray, DVD-HD thumb flash drives, floppy disks or any other type of portable storage device, etc.) stored as an “active” or backup file, in its native format, computer files, discs and drives, sales, advertising and promotional literature, agreements, stored recordings, minutes or other records of meetings, computer data (including information or programs stored in a computer, whether or not ever printed out or displayed) and all drafts, alterations, modifications, changes and amendments of any of the foregoing, all written or graphic records of representations of any kind, and all mechanical or electronic data, records of representations of any kind, including photographs, microfiche, microfilm, videotape, records and motion pictures, and electronic, mechanical, or electric records or representations, tapes, cassettes, discs, magnetic cards, recordings, and cloud storage services.

7. “Electronically Stored Information,” abbreviated as “ESI” has the same meaning and scope as it has in the FMC’s Rules of Practice, as informed by the Federal Rules of Civil Procedure, and includes the following:

- a. structured and unstructured data, as those terms are defined in The Sedona Conference Glossary, available at [www.thesedonaconference.org/publications](http://www.thesedonaconference.org/publications);
- b. activity listings of electronic mail receipts and/or transmittals;
- c. output resulting from the use of any software program, including word processing documents, spreadsheets, database files, charts, graphs and outlines, electronic mail, text messages (SMS, MMS or TMS), instant messages (such as iMessage, WhatsApp, WeChat, Google Hangout or similar program) or bulletin board

programs, operating systems, source code, PRF files, PRC files, batch files, ASCII files, and all miscellaneous media on which they reside and regardless of whether said electronic data exists in an active file, a deleted file, or file fragment;

- d. any and all items stored on computer memories, hard disks, floppy disks, CD discs, DVD discs, flash drives, thumb drives, memory cards, magnetic tape, microfiche, or in any other vehicle for digital data storage and/or transmittal, such as a personal digital assistant (e.g., iPhone, Android, Blackberry, Smart Phone or similar device) and file folder tabs, and/or containers and labels appended to, or relating to, any physical storage device associated with each original and/or copy of all documents requested herein;
- e. any and all items stored on voice-mail systems, websites, company intranet sites, chat rooms and social networking websites (e.g., Facebook, Twitter, LinkedIn, and other social websites listed at [http://en.wikipedia.org/wiki/List\\_of\\_social\\_networking\\_websites](http://en.wikipedia.org/wiki/List_of_social_networking_websites)); and
- f. any and all data, data compilations, and data analyses.

8. An “inland intermodal terminal” means rail terminals, container yards, freight stations, intermodal equipment storage areas, container depots, and similar facilities in the United States.

9. “MH” refers to merchant haulage, which is a carriage arrangement whereby the shipper or designated motor carrier bears the financial responsibility for container delivery. MH does not include carrier arrangements, sometimes called an MH exception, whereby a Respondent Ocean Carrier bears the financial responsibility for container delivery even though such delivery is not under a through rate or contract.

10. “Respondent Ocean Carriers” are CMA CGM S.A.; COSCO Shipping Lines Co. LTD.; Evergreen Line Joint Service Agreement, FMC Agreement No. 011982; Hapag-Lloyd AG; HMM Co. Ltd.; Maersk a/s; MSC Mediterranean Shipping Company S.A.; Ocean Network Express Pte. Ltd.; Wan Hai Lines Ltd.; Yang Ming Marine Transport Corp.; and Zim Integrated Shipping Services.

11. “Person” or “Persons” includes individuals, corporations, partnerships, limited partnerships, unincorporated associations, and all other governmental and non-governmental entities.

12. “POP” is the Pool of Pools at the Port of Los Angeles and the Port of Long Beach operated by Interpool, Inc. DBA TRAC Intermodal, Direct ChassisLink Inc., and Flexi-Van Leasing, Inc. and their affiliates.

13. “You” or “Yours” means Flexi-Van Leasing, Inc. and its affiliates, parents, subsidiaries, divisions, predecessors, successors and DBAs.

### **INSTRUCTIONS**

1. Except as to Documents and things as to which You assert a claim of privilege or other exemption from disclosure, furnish all Documents or things in Your actual or constructive possession, custody or control, or known or available to You, regardless of the physical location of the Documents, or whether such Documents or things are possessed directly by You or by Your employees, agents, representatives, affiliates, subsidiaries, accountants, attorneys, investigators or consultants.

2. If any Document covered by these requests is withheld by reason of a claim of attorney-client privilege, attorney work product protection, or any other privilege or protection, please furnish a log providing the following information with respect to each such withheld

document: date, author, recipients, general subject matter sufficient to make a prima facie determination whether the asserted privilege has been properly invoked, and the legal basis upon which the Document has been withheld.

3. If any requested Document cannot be produced in full, You are to produce it to the extent possible, indicating which Document, or portion of such Document, is being withheld, and the reason that it is being withheld.

4. If production of any portion of a Document is required pursuant to these Requests, produce the entirety of that Document.

5. Documents not otherwise responsive to these Requests shall be produced if such Documents mention, discuss, refer to, or explain the Documents that are called for by these Requests, or if such Documents are attached to Documents called for by these Requests and constitute routing slips, transmittal memoranda, letters, cover sheets, comments, evaluation or similar materials.

6. All Documents shall be produced in the same order as they are kept or maintained by You in the ordinary course of Your business. If any Documents have been removed from the files in which they were found for purposes of producing them in response to these Requests, indicate for each Document the file(s) from which the Document(s) was (or were) originally located.

7. If a Document once existed and has subsequently been lost, destroyed, or is otherwise missing, please provide sufficient information to identify the Document and state the details concerning its loss.

8. With respect to any Document maintained or stored electronically, please harvest it in a manner that maintains the integrity and readability of all data, including all metadata.

9. Unless otherwise agreed, all ESI should be produced in native format in the original electronic file format(s) of the Documents or by electronic file transfer. Specifically, and in no way limiting the generality of the foregoing, presentations, such as PowerPoint presentations, and data compilations, such as Excel spreadsheets, shall be produced in native format.

10. Data called for by this Request must be submitted electronically in a reasonably usable compilation that will allow IMCC to access the information it contains. For IMCC to be able to access and interpret data, You must provide, for each database, a Data Dictionary that includes, for each table in the database:

- a. the name of the table;
- b. a general description of the information contained;
- c. the size in both number of records and megabytes;
- d. a list of fields;
- e. the format, including variable type and length, of each field;
- f. a definition for each field as it is used by You, including the meanings of all codes that can appear as field values;
- g. the fields that are primary keys for the purpose of identifying a unique observation;
- h. the fields that are foreign keys for the purpose of joining tables; and
- i. an indication of which fields are populated.

11. Please produce all Documents maintained or stored electronically in native, electronic format with all relevant metadata intact. Encrypted or password-protected Documents should be produced in a form permitting them to be reviewed.

12. Please organize electronic Documents produced for inspection in the same manner that You store them (e.g., if maintained by a custodian, such as e-mail residing on an e-mail server, please organize Documents for production by custodian; if maintained as a subfolder of “My Documents” on a custodian’s hard drive, please organize Documents for production by custodian with path information preserved, etc.).

13. Documents attached to each other should not be separated, including hard-copy versions of Documents attached to hard-copy printouts of e-mails produced pursuant to these Requests.

14. Documents maintained or stored in paper, hard-copy form shall be produced as searchable .PDF (*i.e.*, portable Document format files with embedded text) and in an appropriate and usable manner (*e.g.*, by copying such data onto an external hard drive).

15. These requests require production of Documents in the same form and same order as they are kept in the usual course of business or organized and labeled to correspond with the requests set forth below.

16. Documents stored as electronic data on magnetic, optical, or other storage media as “active” or “backup” files shall be produced in their native formats with any associated metadata.

17. To the extent responsive Documents reside on databases and other such systems and files, You are requested to produce the relevant database in useable form and/or permit access for inspection, review and extraction of responsive information.

18. Each document request, and each subpart thereof, shall be separately set forth and accorded a separate answer. Each response shall first set forth verbatim the document request to which it is responsive, followed by Your response.

19. No part of a document request shall be left unanswered merely because an objection was interposed to another part of the document request.

20. If You object to any document request or subpart thereof, the objection shall state with specificity all grounds. Any ground not stated shall be waived.

21. If any objection is made to any document request, all Documents covered by that request but not subject to the objection should be produced.

22. If any information specified in this Request appears on any page of any document, all pages of the document shall be produced in response to this Request.

23. These requests seek Documents concerning the provision of chassis in the United States, in whole or in part.

## **DOCUMENT REQUESTS**

### **REQUEST FOR PRODUCTION NO. 1.**

Documents and Communications relating to contracts or agreements with Respondent Ocean Carriers (and any amendments thereto) to provide chassis for the transport of Respondent Ocean Carrier containers, including (1) Your responses to requests for proposals from Respondent Ocean Carriers and negotiations thereof, (2) Your proposals to Respondent Ocean Carriers related to the withdrawal of Respondent Ocean Carriers from CCM-managed chassis pools and negotiations thereof, (3) Your analyses of chassis pricing for CH container movements and the effect on such pricing from designating or not designating You as the preferred/default provider for MH container movements and/or allowing or not allowing motor carrier chassis choice for MH movements, and (4) Your analyses of the effects of chassis interoperability or non-interoperability with other chassis providers or chassis pools at ports or inland intermodal terminals on availability operational efficiency and quality of chassis pricing. Documents

responsive to this request include Documents submitted to Your board of directors, management, and/or owners, such as strategy memoranda, presentations, and business plans, including with respect to topics (1) – (4). The Relevant Time Period for this Request is from January 1, 2011 to the present.

### **REQUEST FOR PRODUCTION NO. 2.**

Documents and/or data sufficient to show for each port or inland intermodal terminal at which You provide chassis for Respondent Ocean Carriers: (1) the number of Respondent Ocean Carrier container movements that utilize chassis provided by You that are CH movements; (2) the number of Respondent Ocean Carrier container movements that utilize chassis provided by You that are MH movements; (3) the number of Respondent Ocean Carrier MH container movements that do not utilize a chassis provided under Your contracts with any Respondent Ocean Carrier; (4); the average and median age of Your chassis; and (5) Your daily rental prices and amendments and updates thereto for chassis used in MH movements. Documents and/or data responsive to categories (1), (2), and (3) may be provided in a format that aggregates such data no less frequently than monthly by Respondent Ocean Carrier. Documents and/or data responsive to category (4) may be provided in a format that aggregates such data no less frequently than semiannually by port and inland intermodal terminal. The Relevant Time Period for this Request is from January 1, 2015 to the present.

### **REQUEST FOR PRODUCTION NO. 3.**

Documents sufficient to show Your discounts, if any, below daily rental prices provided to motor carriers for chassis to be utilized for MH movements at each port or inland intermodal terminal at which You provide chassis for Respondent Ocean Carriers, including Your reasons and strategy for providing such discounts. Documents responsive to this request include

Documents submitted to Your board of directors, management, and/or owners, including strategy memoranda, presentations, and business plans and contracts including such discounts, if any.

The Relevant Time Period for this Request is from January 1, 2015 to the present.

**REQUEST FOR PRODUCTION NO. 4.**

Documents and Communications related to Flexi-Van Leasing, Inc. and Direct ChassisLink, Inc.'s January 2014 request for a Department of Justice Antitrust Division Business Review Letter.

**REQUEST FOR PRODUCTION NO. 5.**

Documents and Communications relating to the FMC's 2019 Memphis Study Supply Chain Innovation Team in Fact Finding Investigation No. 28.

**REQUEST FOR PRODUCTION NO. 6.**

Documents sufficient to show the operation of the POP, including (1) the system for financial settlement among participating POP chassis contributors, (2) the billing for chassis usage in the POP by chassis contributors, (3) the quality of chassis contributed to the POP and maintenance of roadability, (4) the eligibility of an Additional Chassis Contributor to participate as a chassis contributor to the POP, (5) the entities responsible for the administration of the POP, and (6) any decisions or votes by participants in the POP to allow or not allow the institution of motor carrier chassis choice on MH movements. Documents responsive to this request include agreements, manuals, and procedures, including any amendments thereto. The Relevant Time Period for this Request is from January 1, 2014 to the present.

**REQUEST FOR PRODUCTION NO. 7.**

Documents and Communications relating to the establishment and continuation of the eligibility requirement that Additional Chassis Contributors to the POP must have a contract with

an ocean carrier (or other carrier by water) and relating to the acceptance or rejection of Additional Chassis Contributors to the POP. The Relevant Time Period for this Request is from January 1, 2014 to the present.

**REQUEST FOR PRODUCTION NO. 8.**

Documents sufficient to show Your analyses of the benefits and harms of establishing and/or disestablishing interoperable chassis pools at each port or inland intermodal terminal at which You provide chassis for Respondent Ocean Carriers, including pools managed by CCM4. Documents responsive to this request include Documents submitted to Your board of directors, management, and/or owners, including strategy memoranda, presentations, and business plans. The Relevant Time Period for this Request is from January 1, 2015 to the present.

**REQUEST FOR PRODUCTION NO. 9.**

Documents sufficient to show Your annual revenues from each Respondent Ocean Carriers for CH and/or MH movements at each port, inland intermodal terminal, and/or geographical region served by You. The Relevant Time Period for this Request is from January 1, 2011 to the present.

**REQUEST FOR PRODUCTION NO. 10.**

Documents sufficient to show Your organization, ownership, and reporting responsibilities for chassis at each port and inland intermodal terminal at which You provide chassis, including the persons responsible for chassis provisioning and for negotiating contracts with Respondent Ocean Carriers. The Relevant Time period for such requests is from January 1, 2019 to the present.

## **EXHIBIT B**

**FEDERAL MARITIME COMMISSION**  
**Office of Administrative Law Judges**

INTERMODAL MOTOR CARRIERS CONFERENCE, AMERICAN  
TRUCKING ASSOCIATIONS, INC., *Complainant*

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT ASSOCIATION  
INC.; CONSOLIDATED CHASSIS MANAGEMENT, LLC;  
CMA CGM S.A.; COSCO SHIPPING LINES Co. LTD.;  
EVERGREEN LINE JOINT SERVICE AGREEMENT, FMC No.  
011982; HAPAG-LLOYD AG; HMM Co. LTD.; MAERSK A/S;  
MSC MEDITERRANEAN SHIPPING COMPANY S.A.;  
OCEAN NETWORK EXPRESS PTE. LTD.; WAN HAI LINES LTD.;  
YANG MING MARINE TRANSPORT CORP.; AND  
ZIM INTEGRATED SHIPPING SERVICES, *Respondents*.

**DOCKET NO. 20-14**

Served: March 4, 2021

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**ORDER OF:** Erin M. WIRTH, *Chief Administrative Law Judge*.

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**ORDER ENTERING STIPULATION**

On March 1, 2021, the parties filed a joint motion seeking entry of a stipulation and order of confidentiality with exhibit A attaching the stipulation and order of confidentiality ("Stipulation"). The parties jointly request that the Stipulation be entered as an order in this matter.

The joint request is **GRANTED**, and it is hereby **ORDERED** that the Stipulation shall be entered as an order in this proceeding.



---

Erin M. Wirth  
Chief Administrative Law Judge

**UNITED STATES OF AMERICA  
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA CGM S.A., COSCO  
SHIPPING LINES CO. LTD., EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982,  
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK  
A/S, MSC MEDITERRANEAN SHIPPING  
COMPANY S.A., OCEAN NETWORK EXPRESS  
PTE. LTD., WAN HAI LINES LTD., YANG MING  
MARINE TRANSPORT CORP., AND ZIM  
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

**JOINT MOTION FOR ENTRY OF STIPULATION  
AND ORDER OF CONFIDENTIALITY**

The Parties in the above-captioned Proceeding, Complainant, Intermodal Motor Carriers Conference of the American Trucking Associations, Inc. and Respondents, Ocean Carrier Equipment Management Association, Inc. (“OCEMA”), Consolidated Chassis Management, LLC (“CCM”), CMA CGM S.A. (“CMA”), COSCO Shipping Lines (“COSCO”), Evergreen Line Joint Service Agreement, FMC No. 011982 (“Evergreen”), Hapag-Lloyd AG (“Hapag-Lloyd”), HMM Co. Ltd. (“HMM”), Maersk a/s (“Maersk”), MSC Mediterranean Shipping Company S.A. (“MSC”), Ocean Network Express Pte. Ltd. (“ONE”), Wan Hai Lines Ltd. (“Wan Hai”), Yang Ming Marine Transport Corp. (“Yang Ming”), and Zim Integrated Shipping Services (“Zim”) (collectively “the Parties”) hereby move the Commission to enter the

Stipulation and Order of Confidentiality executed by the Parties and attached hereto as Exhibit

A. The Parties have jointly drafted the attached and agree to be bound by all of the terms contained therein.

WHEREFORE, the Parties request that the Commission grant this motion for entry of the submitted Stipulation and Order of Confidentiality.

Respectfully submitted,

DATED: March 1, 2021

/s/ W. Stephen Cannon

W. Stephen Cannon  
David D. Golden  
Seth D. Greenstein  
Richard O. Levine  
J. Wyatt Fore  
Osob M. Samantar  
CONSTANTINE CANNON LLP  
1001 Pennsylvania Avenue, NW  
Suite 1300N  
Washington, DC 20004  
Phone: 202-204-3500  
scannon@constantinecannon.com

Richard Pianka  
American Trucking Associations, Inc.  
950 N. Glebe Rd. Ste. 210  
Arlington, VA 22203  
(703) 838-1889  
rpianka@trucking.org

*Counsel for Complainant  
Intermodal Motor Carriers Conference of the American Trucking Associations*

/s/ Wayne R. Rohde

Wayne R. Rohde  
Christopher Raleigh  
Kathryn Sobotta  
COZEN O'CONNOR  
1200 Nineteenth Street, NW  
Washington, D.C. 20036  
wrohde@cozen.com  
craleigh@cozen.com  
ksobotta@cozen.com

*Counsel for Ocean Carrier Equipment Management Association, Inc.; Consolidated Chassis Management, LLC.; CMA CGM S.A.; COSCO Shipping Lines Co. Ltd.; HMM Company Limited; Maersk A/S; MSC Mediterranean Shipping Company S.A.; Ocean Network Express Pte. Ltd.; Wan Hai Lines Ltd.; Zim Integrated Shipping Services; and co-counsel for Evergreen Line Joint Service Agreement, FMC No. 011982*

/s/ Paul M. Keane

Paul M. Keane  
Joseph De May  
CICHANOWICZ CALLAN KEANE & DE MAY, LLP  
50 Main Street  
White Plains, NY 10606  
pkeane@cckd-ny.com  
jdemay@cckd-ny.com

*Counsel for Evergreen Line Joint Service Agreement, FMC No. 011982*

/s/ Deana E. Rose

Deana E. Rose  
MANELLI SELTER PLLC  
1725 I Street, NW, Suite 300  
Washington, D.C. 20006  
drose@mdslaw.com

*Counsel for Yang Ming Marine Transport Corp.*

/s/ Gerald A. Morrissey

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Gerald A. Morrissey III  
Christopher Nolan  
HOLLAND & KNIGHT LLP  
800 17<sup>th</sup> Street NW, Suite 1100  
Washington, D.C. 20006  
gerald.morrissey@hklaw.com  
chris.noland@hklaw.com

*Counsel for Hapag-Lloyd AG*

# **EXHIBIT A**

**UNITED STATES OF AMERICA  
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

FMC Docket No. 20-14

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA CGM S.A., COSCO  
SHIPPING LINES CO. LTD., EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982,  
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK  
A/S, MSC MEDITERRANEAN SHIPPING  
COMPANY S.A., OCEAN NETWORK EXPRESS  
PTE. LTD., WAN HAI LINES LTD., YANG MING  
MARINE TRANSPORT CORP., AND ZIM  
INTEGRATED SHIPPING SERVICES,

Respondents.

**STIPULATION & ORDER OF CONFIDENTIALITY**

WHEREAS, the above-captioned Federal Maritime Commission proceeding (“Proceeding”) is likely to involve production of trade secrets, valuable commercial information, personal information, business and financial proprietary information, disclosure of which and use for any purpose other than in this Proceeding would cause specific prejudice or harm, such as annoyance, embarrassment, oppression, or undue burden or expense;

IT IS HEREBY STIPULATED AND AGREED, in good faith, by the undersigned counsel for the Parties that the following Order of Confidentiality shall be applicable to this Proceeding and shall govern all hard copy and electronic information, documents, and materials

produced or disclosed in relation to this Proceeding. These materials shall be referred to hereinafter as “Proceeding Material.”

**Definition of Confidential Information**

1. Each Producing Party shall have the right to designate information or Proceeding Material as “Confidential” when it reveals or reflects

- a. unpublished business, financial, research or marketing data, methods or plans, internal emails, memos, trade secrets, customer information, customer negotiations or operational or technical information;
- b. private or confidential personal information;
- c. other information of a nonpublic nature that a Party reasonably and in good faith believes to be commercially, competitively, or personally sensitive, or proprietary in nature entitled to protection under 46 CFR §502.141(j)(1) of the Rules of Practice and Procedure, or
- d. information that is not publicly-known, that is not in the public domain, or was previously known or in the possession of the Receiving Party, so long as the information was not known or in possession of the Receiving Party under any other obligation to maintain confidentiality or restriction on disclosure.

**Definition of Outside Counsel Eyes Only Information**

2. Each Producing Party shall have the right to designate information or Proceeding Material as Outside Counsel Eyes Only (“OCEO”) when it qualifies as “Confidential” as defined above and whose disclosure to anyone other than outside counsel has a substantial probability of jeopardizing the Parties’ competitive business interests or the competitive or privacy interests of the clients or individual Party in this Proceeding.

3. Information or Proceeding Material designated as “Confidential” or “Confidential OCEO” shall be referred to hereinafter as "Confidential Information."

**General Provisions**

4. All Parties designating Confidential Information and/or Confidential OCEO shall have a bona fide need for confidential treatment of information including trade secret or other confidential research, development, or commercial information pursuant to 46 CFR §502.141(j)(1)(vii).

5. The distribution and dissemination of any information designated as Confidential Information is limited to the following persons:

- a. counsel and co-counsel of record for any Party in this Proceeding including necessary paralegal, secretarial, and clerical personnel assisting counsel;
- b. any officer, manager, Board Member, or employee of either Party who may be consulted regarding this Proceeding;
- c. consultants or experts who are not employed by, or otherwise affiliated with, a Party in this Proceeding, and who are retained by a Party or its counsel to assist in the preparation of discovery, and/or this Proceeding;
- d. vendors retained by any of the Parties for the purpose of assisting with discovery, litigation support personnel, stenographers, and clerical employees whose duties and responsibilities require access to such materials; and
- e. Judge Wirth, the Federal Maritime Commission staff and personnel of the Commission.

6. The distribution and limitation of any information designated Confidential OCEO is limited to the following persons:

- a. outside counsel and co-counsel of record for any Party in this Proceeding including necessary paralegal, secretarial, and clerical personnel assisting counsel;
- b. consultants or experts who are not employed by, or otherwise affiliated with, a Party in this Proceeding, and who are retained by a Party or its counsel to assist in the preparation of discovery, and/or this Proceeding;
- c. vendors retained by any of the Parties for the purpose of assisting with discovery, litigation support personnel, stenographers, and clerical employees whose duties and responsibilities require access to such materials; and
- d. Judge Wirth, the Federal Maritime Commission staff and personnel of the Commission.

7. All persons authorized to receive and view Confidential Information shall take reasonable steps to secure any Confidential Information, and shall limit access to Confidential Information to those persons identified above in Paragraphs 5 or 6.

8. Persons identified in Paragraphs 5(c), (d) and 6(b), (c) shall read, agree to the terms of this Order of Confidentiality, and sign a Certification form annexed at Appendix A.

9. A Party shall immediately notify any inadvertent disclosure of Confidential Information in breach of this Order of Confidentiality, to the ALJ and the Producing Party counsel. After which, the Party shall take necessary steps to prevent further disclosures in breach of any of the provisions of this Order of Confidentiality.

10. The Parties shall either destroy all materials designated Confidential Information or return them to the original Producing Party at the Producing Party's expense within forty-five

(45) days of the final conclusion of this Proceeding either by settlement or final judgment, including exhaustion of all appeals.

### **Privileged and Protected Material**

11. The Parties preserve any and all privileges and exemptions including but not limited to attorney-client privilege and work product privilege, which apply to any and all Proceeding Material.

12. Inadvertent disclosure shall not be deemed as a waiver of any privilege or exemption in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure.

13. Within forty-eight (48) hours of the receipt of a written notice from a Party claiming inadvertent disclosure of privileged material, the Receiving Party shall return immediately any Proceeding Material deemed privileged by such letter, and the Receiving Party shall also delete and/or destroy any copies of such privileged or protected materials inadvertently produced by the Producing Party identified in such letter, subject to and without waiving the Receiving Party's rights to challenge the disclosures as inadvertent or the designation as confidential or privileged in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure.

### **Use of Confidential Information in Commission Hearings**

14. Confidential Information disclosed to the Commission and ALJ in papers including exhibits, shall be labeled in accordance with 46 CFR §502.5.

15. The provisions of this Order of Confidentiality shall govern the Proceeding, including discovery, and shall not affect the conduct of the ALJ. The ALJ shall order an

appropriate procedure for the use of the Confidential Information at or during the course of the Proceeding pursuant to 46 CFR §502.141(j)(1).

### **Designating Protected Material**

16. Documents containing Confidential Information as defined in Paragraphs 7, 8, and 9 shall be marked with the word “CONFIDENTIAL” or “CONFIDENTIAL OCEO” on each page of that document that contains such information.

17. Where a Party produces Proceeding Material in electronic form, it may make the confidentiality designation by a letter which identifies the Bates Numbers of the electronic documents which comprise Confidential Information.

18. Depositions may be designated as Confidential Information by (i) stating orally on the record that the information is Confidential Information on the day the testimony is given, or (ii) sending written notice designating testimony as Confidential Information within thirty (30) days after receipt of the official deposition transcript or deposition copy.

19. Any Party that designates information or items for protection under this Order of Confidentiality must take care to limit any such designation to specific material that qualifies.

20. Once the Receiving Party has notice that the Producing Party has designated Proceeding Material as Confidential Information, the Receiving Party shall treat the designated materials as Confidential Information in accordance with this Order of Confidentiality regardless of how much time has passed since the Confidential Information was first disclosed or produced.

### **Challenging Confidential Designations**

21. Any Party may challenge a designation of “Confidential” or “Confidential OCEO” at any time that is consistent with the Commission’s Scheduling Order.

22. The Party challenging the designation must object with particularity and give a complete explanation by letter to the Producing Party Counsel.

23. If the Parties are unable to resolve the challenge, then the Producing Party may move the ALJ for a protective order or the objecting party Counsel may move the ALJ to challenge the designation. The Proceeding Material, however, shall continue to be deemed Confidential Information until the ALJ rules on any such motion.

24. If a Producing Party fails to seek a protective order to uphold its designation, any disputed Proceeding Material will lose its Confidential designation thirty (30) days after the date of the letter referred to in Paragraph 21.

#### **Reservation of Rights**

25. The Order of Confidentiality shall not prevent any Party from disclosing Confidential Information to any person as it deems appropriate, to adhere to the Commission's guidelines for a just and speedy Proceeding. Any such disclosure shall not be deemed a violation or waiver of the Party's obligations under this Order of Confidentiality.

26. The ALJ shall retain jurisdiction of the Parties, even after termination of this Proceeding, regarding any dispute between them on the improper use of Confidential information disclosed under protection of this Order of Confidentiality.

27. Disclosure of Confidential Information Pursuant to Legal Process. If Confidential Information in the possession of the Receiving Party is subpoenaed or sought pursuant to discovery or other legal process, the Party to whom the request has been made or an order directed shall promptly give written notice of such request to the Party that produced the information. No Party shall disclose another Party's Confidential Information without first giving that Party notice for an opportunity to seek an order governing disclosure of the requested

information. The Party that produced the information shall have the sole burden of defending against such request.

DATED:

# APPENDIX A

**UNITED STATES OF AMERICA  
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,  
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT  
ASSOCIATION, INC., CONSOLIDATED CHASSIS  
MANAGEMENT, LLC, CMA CGM S.A., COSCO  
SHIPPING LINES CO. LTD., EVERGREEN LINE  
JOINT SERVICE AGREEMENT, FMC NO. 011982,  
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK  
A/S, MSC MEDITERRANEAN SHIPPING  
COMPANY S.A., OCEAN NETWORK EXPRESS  
PTE. LTD., WAN HAI LINES LTD., YANG MING  
MARINE TRANSPORT CORP., AND ZIM  
INTEGRATED SHIPPING SERVICES,

Respondents.

**DOCKET NO. 20-14**

**CERTIFICATION TO BE BOUND BY STIPULATION  
AND ORDER OF CONFIDENTIALITY**

I, \_\_\_\_\_ state that

1. My current home address is
2. My present occupation and/or job description is
3. My present employer is
4. The principal address of my employer is
5. I have carefully read and understand the provisions of the Stipulation and Order of Confidentiality executed by the Parties in the above-referenced Proceeding, and I will comply with all provisions of the Stipulation and Order of Confidentiality.

6. I will hold in confidence and not disclose to anyone not qualified under Paragraphs 5 or 6 of the Stipulation and Order of Confidentiality any documents and/or information designated Confidential Information.
7. I will limit use of Confidential Information disclosed to me solely for the purposes of this Proceeding.
8. At the conclusion of the above-referenced Proceeding, I will return all Confidential Information, including any summaries, abstracts, and indices thereof, that come into my possession or destroy all such Confidential Information.

I declare under penalty of perjury that the forgoing is true and correct.

DATE:

---

Signature

---

Printed Name

# Exhibit 4

March 30, 2021

Jeffrey S King  
jeffrey.king@klgates.com

**By E-mail**

T +1 617 261 3179  
F +1 617 261 3175

W. Stephen Cannon (scannon@constantinecannon.com)  
David D. Golden (dgolden@constantinecannon.com)  
Richard O. Levine (rlevine@constantinecannon.com)  
Seth D. Greenstein (sgreenstein@constantinecannon.com)  
Constantine Cannon LLP  
1001 Pennsylvania Avenue, NW, Suite 1300N  
Washington, D.C. 20004

**Re: IMCC v. OCEMA, et al., FMC Docket No. 20-14 - Subpoenas to Non-Parties**

Dear Counsel:

As you are aware, our firm represents Direct ChassisLink Inc. ("DCLI"); Flexi-Van Leasing, Inc. ("Flexi"); and Interpool, Inc. d/b/a TRAC Intermodal ("TRAC"), referred to herein collectively as the "Chassis Providers," who recently received subpoenas from you. The subpoenas are materially identical, except as to one request addressed to DCLI discussed below. We spoke briefly on March 22 and agreed we would send you this letter in order to set forth our initial concerns and objections regarding the subpoenas to serve as an outline of issues to be discussed during our next call.

First, thank you for your agreement in our call that any deadlines that would otherwise apply as a result of the service of the subpoenas are indefinitely extended to allow for our discussions. (I subsequently confirmed that by email.) This applies to the 10-day motion deadline of 46 CFR 502.132, the 20-day response/return deadline specified in the subpoenas, and any other applicable deadlines. Thank you for your cooperation on this issue.

We write now based on our clients' preliminary review and assessment of the subpoenas. Our clients have not yet been able to determine the full extent of the burden any particular request poses for each of them, such as the specific location of responsive information, whether back-ups/archives are implicated, the cost of retrieval, and the time commitment or volume of information involved. For those reasons, this letter is preliminary, and we reserve the right to modify our position and the concerns and objections described herein.

We have some general concerns with, and objections to, the subpoenas, which we address first below. That is followed by our specific objections to the requests in the subpoenas.

### **General concerns and objections:**

The following general concerns and objections apply to each request contained in the subpoenas:

The requests are overly broad, vague, not properly limited in time or scope, seek irrelevant information, and impose an undue burden on the non-party Chassis Providers: The Chassis Providers are not parties to your FMC proceeding, and non-parties should not be unnecessarily burdened by subpoenas. The requests in the subpoenas are extremely broad, not properly limited in time or scope (geographically or otherwise), are unduly burdensome, and seek documents that do not appear to us to be relevant to the action, and that are highly confidential. In addition, many of the specific requests are overly broad in that they request all documents that “relate” to a broad topic, seek information that is irrelevant to your claims, which are against Ocean Carriers and their related entities and not against Chassis Providers, and are vague in not defining what is “sufficient to show” various items you list. All of these concerns need to be addressed to avoid undue burden on these non-parties.

Party discovery should be completed first: The parties should complete discovery between themselves first, before involving non-parties. Much of the relevant requested information is available from the respondents. It would be more appropriate to complete that discovery, see what you might need to allow the presentation of your claims, and then revisit what should be requested in subpoenas to non-parties. We note that Judge Wirth has advised the parties to consider initially limiting discovery, and deferring discovery requests until determining what discovery would be sufficient to allow for motions seeking summary decision. Pressing broad discovery requests on non-parties before the parties to the litigation get their own houses in order on these matters would serve no valid interest. *See, e.g., Genus Lifesciences v. Lannett Co.*, 2019 WL 7313047 (N.D. Cal. Dec. 30, 2019) (“in general, there is a preference for parties to obtain discovery from one another before burdening non-parties with discovery requests”) (quoting *Soto v. Castlerock Farming & Transp., Inc.*, 282 F.R.D. 492 (E.D. Cal. 2012)).

Geographic limitations should apply: We understand the parties have agreed to a geographic limitation among themselves; yet the subpoenas contain no such limitation. Without waiving other objections to each request, at a minimum, at least the same geographic limitations should be in place in the subpoena requests. We understand from the March 1, 2021 Joint Status Report and Proposed Discovery Schedule that the parties, applying the Presiding Officer’s guidance noted above, agreed “to limit document discovery to the following geographic areas: the Ports of Long Beach and Los Angeles, the Port of Savannah, intermodal terminals in the Chicago area, and intermodal terminals in the Memphis area.” Even within those areas, there can be many locations involved, requiring consideration of whether further limitations within those areas are necessary.

Time limitations should apply: Many requests contain extremely expansive date ranges, sometimes over ten years, well beyond what would appear to be relevant to the issues raised in the action. These date ranges need to be restricted to the shortest window possible, particularly since these are subpoenas to non-parties. We do not see in your complaint specific allegations of conduct that warrant these extremely long time periods. *See, e.g., ¶ 51* (alleging conduct over the “last two years”). And while we understand that you are seeking only some kind of declaratory relief at this point, the Shipping Act’s limitation of the reparations period to three years offers further indication that your inquiries ranging back ten years or more are unreasonable on their face.

The subpoenas do not comply with the relevant federal rules: The Federal Rules of Civil Procedure provide guidance on how subpoena practice is to be conducted here (46 USC 41303(a)(2) and 46 CFR 502.12). Those Rules provide considerable protection to avoid burden, particularly on non-parties, and to ensure proportionality with respect to discovery requests. They also provide for cost-shifting in appropriate cases. See, e.g., *In re Aggrexox Antitrust Litigation*, 2017 U.S. Dist. LEXIS 172231 (D. Conn. Oct. 18, 2017) (Rule 45 makes cost-shifting “mandatory in all instances in which a non-party incurs significant expense from compliance with a subpoena”). The Chassis Providers are currently assessing the burden, time commitment, and cost that might be associated with responding to the requests and reserve the right to seek reimbursement of all such costs.

Confidentiality needs to be addressed: We appreciate that you attached the Stipulation & Order of Confidentiality to the subpoena documents, and that you believe it is intended to govern non-party document productions. However, while that might be the intent, and while the parties to the action may agree to that, the Stipulation & Order of Confidentiality itself is worded in such a way that does not unambiguously apply to non-parties. There are multiple provisions that specifically address rights/remedies available to “Parties,” defined (in the Joint Motion) as the parties to the FMC action. We also do not read the order to provide clearly that discovered materials may be used only for the FMC proceedings. Therefore, we believe a formal modification to the Order is required in order for its provisions to unambiguously protect non-parties and address other confidentiality concerns. We will send to you separately a proposed modification of the Stipulation & Order of Confidentiality.

Privileged materials will not be produced: Many of the requests call for information that is privileged and will not be produced.

Production format: For any production that occurs, we will need to reach agreement on an acceptable format and a production protocol that minimizes burden and cost. Issues to be discussed include de-duplication, removal of lesser-imbedded email strings, format of produced items, manner of tagging for confidentiality, etc. You mentioned you would send us the parties’ ESI Stipulation for our review. We have not yet received that document.

Some instructions are improper: We object to the extent any Instruction imposes obligations beyond those reasonably required of non-parties in responding to a subpoena. Examples are Instruction 10 to the extent it requires that the Chassis Providers “create” a document or “Data Dictionary.”

Accessing backup / archive materials can be unduly burdensome: The Instructions specifically mention “backup” files and some requests, depending on their breadth, may implicate backup, archive, and/or disaster recovery media. The requests should be limited to active materials in most (if not all) cases.

### **Specific objections:**

In addition to the general objections raised above, which are incorporated in each request, specific objections follow:

Request for Production No. 1 (same in all three / “contracts or agreements”): This request calls for information that should be obtained from the Ocean Carrier parties. It is also overly broad in

that it requests documents that “relate” to broad topics spanning over ten years, and seeks irrelevant information, such as the Chassis Providers’ analyses of various issues.

Request for Production No. 2 (in all three / “chassis/movement data”): This request calls for information that should be obtained first from the Ocean Carrier parties and/or from CCM as the pool manager for various implicated pools/geographic areas. It is also overly broad in that it requests documents pertaining to every container movement for over six years at every port in which our clients operate throughout the United States, including multiple locations at each port, which would generate an extremely large volume of data. We have difficulty seeing how you would use that data, if it could even be made available, much less how it is relevant to your claims.

Request for Production No. 3 (in all three / “discounts”): This request is overly broad in that it requests documents pertaining to our clients’ pricing to motor carriers (which number in the thousands) for a period of over six years. This is potentially an extraordinarily large volume of data that is not of apparent relevance to your claims, which address the conduct of Ocean Carriers. It is also commercial information of the most sensitive nature and being sought from non-parties.

Request for Production No. 4 (in all three / “DOJ Business Review Letter”): This request seeks information concerning a business review having nothing to do with Ocean Carriers; the review concerned pools established and managed by the Chassis Providers, not your Respondents. It is also burdensome in that it calls for documents pertaining to a review sought over seven years ago, and seeks information on a matter where the bulk of the responsive documents are likely to be privileged and confidential.

Request for Production No. 5 (in all three / “FMC Memphis Study”): To the extent this request seeks information that would be relevant to your claims against the Ocean Carriers, the information should be obtained from the Respondents. It otherwise seems to seek general information about this study that is not relevant to your claims.

Request for Production No. 6 (unique to DCLI / “American Shipper interview”): DCLI is having difficulty seeing the relevance of this request to your claims, as it does not appear different in principle from a request for documents “relating to” any time DCLI ever expressed views on the chassis market. The request also seeks information that is privileged and confidential.

Request for Production No. 6 (in Flexi/TRAC, No. 7 in DCLI / “POP operations”): Your claims are against the pools operated by OCEMA and its affiliates. The Pool of Pools structure is operated by the Chassis Providers. If there is a justification for seeking a huge amount of highly confidential information over a more than seven-year period related to pools that are not subject to your claims, we are not aware of it.

Request for Production No. 7 (in Flexi/TRAC, No. 8 in DCLI / “POP eligibility requirement”): This request is repetitive of the prior request and the same objections apply.

Request for Production No. 8 (in Flexi/TRAC, No. 9 in DCLI / “interoperable pool analyses”): As with the prior two requests, this request broadly seeks a wide range of information about pools that are not the subject of your claims. To the extent it references CCM, relevant information should be sought from CCM and analyzed to see if it provides support for your claims before highly burdensome discovery is sought from non-parties. Further, we do not see the relevance to your claims of the Chassis Providers’ analyses of any topic.

Request for Production No. 9 (in Flexi/TRAC, No. 10 in DCLI / “revenues”): The Chassis Providers’ “annual revenues from each Respondent Ocean Carriers” [sic] is, by definition, information within the possession of the Ocean Carrier Parties that should be obtained from them. The request is also burdensome in that it requests documents pertaining to a huge number of movements, ports, terminals, and regions, and potentially an extremely large volume of data for over a ten-year period. It is also not clear why revenue data from any party is relevant to your action that does not seek monetary damages.

Request for Production No. 10 (in Flexi/TRAC, No. 11 in DCLI / “organization, ownership, and reporting responsibilities for chassis”): We do not see how the Chassis Providers’ internal organization is relevant to your claims, which are against OCEMA and the carriers.

We are available to discuss the foregoing at your convenience. We are copying OCEMA’s counsel as a number of the requests touch on them directly.

Very truly yours,



Jeffrey S King

cc: John Longstreth ([john.longstreth@klqates.com](mailto:john.longstreth@klqates.com))  
Christopher Raleigh ([craleigh@cozen.com](mailto:craleigh@cozen.com))  
Wayne R. Rohde ([wrohde@cozen.com](mailto:wrohde@cozen.com))

# Exhibit 5

April 22, 2021

Jeffrey S King  
jeffrey.king@klgates.com

**By E-mail**

T +1 617 261 3179  
F +1 617 261 3175

W. Stephen Cannon (scannon@constantinecannon.com)  
David D. Golden (dgolden@constantinecannon.com)  
Richard O. Levine (rlevine@constantinecannon.com)  
Seth D. Greenstein (sgreenstein@constantinecannon.com)  
Constantine Cannon LLP  
1001 Pennsylvania Avenue, NW, Suite 1300N  
Washington, D.C. 20004

**Re: IMCC v. OCEMA, et al., FMC Docket No. 20-14 - Subpoenas to Non-Parties**

Dear Counsel:

As you are aware, our firm represents Direct ChassisLink Inc. ("DCLI"); Flexi-Van Leasing, Inc. ("Flexi"); and Interpool, Inc. d/b/a TRAC Intermodal ("TRAC"), referred to herein collectively as the "Chassis Providers," in connection with the above-captioned proceeding. We refer to our letter to you dated March 30, 2021, which contained our initial response and objections to the subpoenas you served on the Chassis Providers. We participated in a telephone conference with you on April 7, 2021, during which we discussed your response to our March 30 letter, limitations you agreed to place on the scope of the subpoena, and your views on the relevance of various categories of requested information. We are writing now to provide our clients' response to your current position regarding the subpoenas.

We appreciate that any deadlines concerning the subpoenas continue to be extended to allow for our discussions. We will also need confirmation from you that any agreement we may reach with respect to the production of any materials in response to the subpoenas would be made without prejudice and without waiver. The Chassis Providers will only consider producing materials if there is agreement that production in response to any given request or in any given category does not mean that they have "opened the door" to any further production in that area or have somehow waived any objection, whether to relevance or otherwise, by agreeing to such production.

Assuming that approach is agreeable, we discuss below those areas where the Chassis Providers would be willing to consider production of certain information. Because we have not yet agreed on the ultimate scope of what might be produced, our clients have not been able to determine the full burden and expense that would be posed for each of them. Therefore, the Chassis Providers continue to reserve their rights with respect to claiming reimbursement of costs (and attorneys' fees) associated with responding to the subpoenas.

We first address some broad topics concerning the limitations on the scope of the subpoenas.

Geographic limitations: You agreed that the geographic limitation described in our March 30 letter can apply to the subpoenas (Ports of Long Beach and Los Angeles, the Port of Savannah, intermodal terminals in the Chicago area, and intermodal terminals in the Memphis area).

Time limitations and sources implicated: You agreed, with a few exceptions that a specific request may warrant, that you would be willing to limit the requests to five years. We continue to believe that a shorter period is more appropriate, whether two or three years, for the reasons explained in the March 30 letter and on our April 7 call. Even if you were able to show the relevance of the longer time period as to certain requests, another important factor here is whether documents to be produced can be obtained from active sources or would involve backup and archive sources – this greatly impacts burden and expense, and is one of the reasons why reasonable time limitations are required. We will need to revisit this issue as we finalize the agreed upon scope of each request.

Confidentiality: As we informed you, the Stipulation & Order of Confidentiality will need to be revised to protect non-party productions in response to subpoenas. We will send to you shortly a draft of the modifications we believe are required. Because of the number of modifications, it will likely be easier to draft an entirely revised Stipulation/Order that incorporates these changes, rather than have the modifications act as a rider to the original Stipulation/Order. We note that the confidentiality concerns are particularly pronounced given that, among other things, another ATA-affiliated entity, NACPC, competes directly with the Chassis Providers.

Production format: We received the ESI Stipulation and are still reviewing it. Should we get to the point that any production implicates the issues and procedures in that Stipulation, we will let you know of any concerns we have.

Improper instructions: You confirmed that you are not looking for the Chassis Providers to “create” any document. You noted that, as an example, by the “Data Dictionary” reference, you were requesting a document that defined the various columns or fields in produced data. This, of course, may require the creation of a document. We should table this issue until we determine whether any potential production implicates this type of request.

Other sources should be exhausted before burdening non-parties: We emphasized our position that the parties should complete discovery between themselves first, before involving and burdening non-parties with subpoenas. You agreed that you are not asking the Chassis Providers to produce anything that you are able to obtain from the parties in the action. We believe your efforts to exhaust sources of information before burdening non-parties goes beyond obtaining information from the Ocean Carrier parties. Much of the information you seek is in the possession of your client's motor carrier members or their affiliates. While they may not be named parties in the action, you are representing their interests, they are members in your client, and they are essentially funding your efforts and pushing the relief you seek. Therefore, the Chassis Providers should not be burdened with any request for information that is available from either the Ocean Carrier parties or from any of your client's members or their affiliates. Particularly given your argument that this proceeding has a compressed timeline, you should seek as much information as you can from your client's members and their affiliates (outside of any formal discovery process) before pursuing that same information via subpoenas to non-parties.

We also discussed your view of the relevance of certain categories of documents. Our view of the relevance arguments you raised follows:

Market information: We do not agree with your broad view of the relevance of Chassis Provider documents that may discuss market information, including “market dynamics,” competitive analyses, efficiencies and inefficiencies associated with different chassis models, and the Chassis Providers’ views on these market issues. On this topic, you argued that the judge has stated she wants discovery regarding the market, market dynamics, and market efficiency issues, pointing to the portion of her order where she refers to market-related information and references FMC decisions relying on antitrust precedent. You informed us you believe the judge is incorrect in her reliance on the cases cited in her order and her view of what information she needs to be considering.

Leaving aside your view that Judge Wirth’s decision and theory do not warrant her seeking the information you now seek from the Chassis Providers, we do not view the judge’s order the way you do. Far from authorizing extensive discovery into market dynamics and performance, the judge actually limited this inquiry. She pointed out that IMCC’s “focus on efficiency may also be misplaced.” This is so because the Commission’s charge in adjudicating your Complaint is to determine if the Respondents’ practices are unreasonable under the Shipping Act, and not to address market structure and efficiency just because IMCC may believe that another structure would be more efficient than a current structure. The order also notes that questions as to market definition and the Respondents’ market power within a properly defined market are to be determined before consideration of whether that market power has been used to harm competition in that market (“the Commission must *first* determine the market relevant to the practice in question, *and then* must determine . . .”)(emphasis added). We will of course defer to the judge as to exactly what she meant in her order, but we do not see it justifying broad discovery from the Chassis Providers, or any discovery as to matters other than the Respondents’ market position and conduct.

You have also requested information regarding the Chassis Providers’ analyses, strategic assessments, and views of the market. Our concerns here begin with what we raised above, but go further. As the Complainant, you need to prepare your case to establish your claims of unreasonable conduct by the Respondents. We do not believe that includes being able to force three independent non-parties to reveal their assessments of the markets and their strategic analyses of the markets so that you can develop your market analysis at their expense and not your own. Market data, market analyses, and strategic assessments are available from market experts and consultants. IMCC should purchase its own market data, from sources such as PIERs, and hire its own market experts.

Our concerns here are heightened because the strategic analyses and other market information you request is highly confidential and of the utmost competitive sensitivity. Regardless of the terms of any Confidentiality Stipulation/Order, the production of this information in response to a non-party subpoena is not warranted and places an unreasonable burden and risk on the Chassis Providers under the required balancing analysis. This is particularly the case given that a direct competitor of the Chassis Providers, NACPC, is made up of influential members of IMCC, your client. No protective order can fully guarantee that the Chassis Providers’ production of competitive and proprietary information will be protected. The Chassis Providers are not willing to provide any information regarding their strategic analyses and views of the chassis markets.

Pool of Pools information: You argued that Pool of Pools information is relevant because PoP operations are raised in your Complaint. You focused on “box rules” and a perception that there is a requirement that an equipment provider can participate in the PoP only if it has a contract with an Ocean Carrier. You argued this is relevant if the box rules or the purported “participation

rule” were adopted as a result of Ocean Carrier pressure or influence. The concerns we raised above with respect to market information generally are also present here.

Notwithstanding these concerns with your requests for market and PoP information, the Chassis Providers will consider production of materials (if any) that reveal any pressures imposed by the Respondents with respect to the box rules or purported participation rule in connection with the structure and operation of the PoP, or will provide confirmation that no such materials exist after performing a reasonable inquiry into the existence of any responsive information regarding those topics.

We now address some additional specific comments regarding each request:

Request for Production No. 1 (same in all three / “contracts or agreements”): You proposed a five-year limit. See our comments above regarding the time limit. Our concerns regarding “market” information also apply here.

Subject to the foregoing, and as discussed above, the Chassis Providers are willing to consider production of materials (if any) that reveal any pressures imposed by the Respondents with respect to the box rules or purported participation rule in connection with the structure and operation of the PoP, or will provide confirmation that no such materials exist after performing a reasonable inquiry into the existence of any responsive information regarding those topics.

Request for Production No. 2 (in all three / “chassis/movement data”): You suggested a five-year limit. See our comments above regarding the time limit. We mentioned the difficulty, if not impossibility, of producing the requested information. You proposed to limit this request to annual summaries showing in and out moves by geographic area further broken down into CH versus MH moves. Even with that limitation, our concerns regarding “market” information apply here. We also believe this information is likely to be available from the Respondents or your client’s motor carrier members. You also asked for information regarding trends in the relationship between CH and MH moves. We suspect Respondents and your client’s members can provide information regarding any trends. We further note that, for an individual Chassis Provider, the information you request would not reveal trends in any event, because the changing customer roster can greatly influence a given Provider’s CH/MH mix, and therefore would not be indicative of a market trend. It would be more appropriate for you to exhaust your efforts with the Respondents, your client’s motor carrier members, and your experts and consultants on this issue. If adequate “trend” information is not available from those sources, we can discuss whether the Chassis Providers are able to provide you with a consensus view of this, perhaps by way of a narrative response.

You also requested production of published rates for five years. Subject to the foregoing, the Chassis Providers are willing to provide this information to you. However, due to the manner in which this information is maintained, it will be provided in narrative format.

Request for Production No. 3 (in all three / “discounts”): Assuming you propose a five-year limit here, our comments above regarding the time limit apply. We do not agree that there is any relevance to a discount a Chassis Provider may provide to a motor carrier, but you should be able to establish that from sources other than the Chassis Providers. This information can and should be obtained from your client’s motor carrier members. You should also seek this information from the Respondents and, if they do not have the actual documentation, they may be willing to provide a qualitative description or stipulation on this point. You will have the contract rates and the

published rates, which will establish they differ, and you have not established why you would need any intermediate rate information. Common sense and basic economic rules would suggest that higher volume customers would receive discounts off a standard rate. You do not need intermediate data points to establish that. We suspect you can establish that either by stipulation or through information you obtain from the Respondents and your client's motor carrier members and their affiliates.

Request for Production No. 4 (in all three / "DOJ Business Review Letter"): Our concerns regarding "market" information apply here. The letter is also outside the five-year limitation you have proposed for other requests, thus further attenuating its relevance.

Request for Production No. 5 (in all three / "FMC Memphis Study"): Our concerns regarding "market" information apply here. Further, any information regarding the Ocean Carriers' conduct and inputs with respect to this Study would be available from them – they are the parties to your proceeding, not the Chassis Providers.

Request for Production No. 6 (unique to DCLI / "American Shipper interview"): Our concerns regarding "market" information apply here. You stated that, as this is likely subsumed in other requests, you would consider tabling this request.

Request for Production No. 6 (in Flexi/TRAC, No. 7 in DCLI / "POP operations"): Assuming you propose a five-year limit here, see our comments above regarding the time limit. Our concerns regarding "market" information apply here. To the extent any pool operations involve Ocean Carrier conduct, that information should be obtained from the Ocean Carriers.

Subject to the foregoing, the Chassis Providers will consider production of materials (if any) that reveal any pressures imposed by the Respondents with respect to the box rules or purported participation rule in connection with the structure and operation of the PoP, or will provide confirmation that no such materials exist after performing a reasonable inquiry into the existence of any responsive information regarding those topics.

Request for Production No. 7 (in Flexi/TRAC, No. 8 in DCLI / "POP eligibility requirement"): See our response to the prior request.

Request for Production No. 8 (in Flexi/TRAC, No. 9 in DCLI / "interoperable pool analyses"): Assuming you suggest a five-year limit here, see our comments above regarding the time limit. Our concerns regarding "market" information apply here.

Request for Production No. 9 (in Flexi/TRAC, No. 10 in DCLI / "revenues"): You proposed a five-year limit. See our comments above regarding the time limit. Our concerns regarding "market" information apply here. We also mentioned the difficulty, if not impossibility, of producing the requested information. You proposed a limitation on this request to summaries and trends, in a manner similar to the limitations proposed for Request No. 2, and our response to Request No. 2 above applies here as well.

Request for Production No. 10 (in Flexi/TRAC, No. 11 in DCLI / "organization, ownership, and reporting responsibilities for chassis"): You stated that you are looking for org charts that list the departments and personnel that have operational responsibilities in the United States, by which you clarified that you mean business and commercial personnel and not technical personnel or corporate structure. You stated you believe the manner in which the Chassis Providers interact

with the Ocean Carriers is relevant to your claims. On that note, the Ocean Carriers can tell you who and which departments they interact with at each Chassis Provider. You therefore do not need this information from the Chassis Providers. We also note that the geographic limitations would apply here.

Subject to the foregoing, the Chassis Providers will consider production of materials describing the corporate positions of those that interact with the Ocean Carriers on the commercial level. Alternatively, they may propose providing this in a narrative form.

We request that you provide us any written responses and objections to discovery that you served on OCEMA's counsel, in order for us to assess the status of that discovery and how it impacts the issues raised above. Please let us know if you are willing to provide those responses to us. We are again copying counsel for Respondents, and make this same request to them with respect to any discovery responses and objections they served on you.

We are available to discuss the foregoing at your convenience.

Very truly yours,

A handwritten signature in cursive script that reads "Jeffrey S. King".

Jeffrey S King

cc: John Longstreth ([john.longstreth@klqates.com](mailto:john.longstreth@klqates.com))  
Christopher Raleigh ([craleigh@cozen.com](mailto:craleigh@cozen.com))  
Wayne R. Rohde ([wrohde@cozen.com](mailto:wrohde@cozen.com))

# Exhibit 6

# CONSTANTINE CANNON LLP

**David Golden**  
202-204-4527  
dgolden@constantinecannon.com

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May 3, 2021

## **BY EMAIL**

Jeffrey S. King  
K&L Gates  
State Street Financial Center  
One Lincoln Street  
Boston, MA 02111

Re: IMCC v. OCEMA, et al., FMC Docket No. 20-14 – Subpoenas to Non-Parties

Dear Jeffrey:

Thank you for your April 22 letter. We respond first with initial comments applicable to multiple Requests in the subpoenas, and then with specific comments to individual Requests. We request your response to the following proposal by May 10, 2021.

Time Period: We believe the time periods identified in the individual requests remain reasonably tied to the production of relevant information, and that in light of the events and allegations of the Complaint, a general six-year time period is reasonable, or as otherwise specified below. We remain willing to discuss specific categories of documents in an effort to reduce the burden on you.

Confidentiality: We agree that the Stipulation and Order of Confidentiality should be revised to cover documents produced by third parties. We note, however, that after 5 weeks since you first identified this issue, you have failed to send your proposed revisions. Given the accelerated nature of this proceeding, we have provided Respondents with a draft Stipulation and Order of Confidentiality that would explicitly provide non-party productions with the same protections as the parties' productions. If your clients believe additional protections are required, they are free to petition the Presiding Officer accordingly.

Production format: Inasmuch as the parties already have agreed to abide by the protocols, we cannot revisit these decisions wholesale or make significant exceptions that

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would impede timely completion of this proceeding. Nevertheless, we can discuss reasonable accommodations for your productions.

Document “creation”: These subpoenas request production of documents in existence. However, that does not preclude the option for a third party to “create” a document, such as from a database in lieu of producing burdensome amounts of data. The specific reference to a “data dictionary,” as we explained to you, was a simple request to explain the meaning of field names for columns or rows in produced spreadsheet data. We do not view this as burdensome, and to the extent it could streamline a deposition, we would think it could be to your clients’ advantage to produce one.

Market information: While we disagree with your characterizations of our discussions, there is no dispute that information that will help Judge Wirth define the relevant market remains relevant in this proceeding. Our requests focus primarily on obtaining studies, analyses, and presentations (produced internally or by consultants) sufficient to show trends in the markets for chassis, including the growth of other IEPs, motor carrier-owned chassis, and the use of motor carrier chassis leases vs. daily rentals, nationally and by geographic market. To the extent your clients have such documents responsive to the subpoena requests, they should be produced. Any concerns regarding confidentiality should be addressed through a Confidentiality Order, not by withholding relevant documents.

Obtaining documents from other sources: To the extent that certain documents may be available from parties to this proceeding, we can discuss specific limitations. But your exception is not so well taken with respect to discovery from other third parties. Particularly because of the compressed timeline of this proceeding and the obligations imposed by the FMC Rules, we cannot accept your suggestion to seek discovery from everyone else first. *See* 46 C.F.R. §502.141(g). Notwithstanding, for certain Requests as noted below, we agree to first seek the documents from other entities or, alternatively, to explore obtaining from your clients a sworn admissible affidavit statement covering the requested information.

Assertions of burden: As we discussed, the Requests seek documents and information only with respect to four geographic regions, which significantly reduces the burden of production. We also are willing to reduce the potential burden with respect to certain requests by accepting documents “sufficient to show” the requested information; or accepting reports from databases generated to show the information; or through

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declarations. Where you continue to object on the basis of burden, please provide us with specific information as to the nature and extent of the burden to enable us to address your concerns such as through search terms or other limitations.

Improper caveats: In the category regarding “Pool of Pools,” and in several of the responses to individual Requests, you suggest that you would be willing to “consider” producing documents that your clients consider to “reveal pressures” by Respondents. These caveats are unacceptable on two counts. First, we are engaging in meet and confers with you to obtain commitments to produce documents, not to merely have you “consider” our requests. Second, the Requests set forth objective criteria for relevance, which should not be limited by subjective, unilateral decisions by you and your clients. We continue to request production of relevant documents responsive to the subpoena requests.

\* \* \*

We respond below to the specific comments on each subpoena request. The general comments above, including concerning time period or confidentiality, also apply to the specific points raised below.

Request 1 – For subparts (1) to (3), we agree to first seek documents from other parties. However, those productions may not be sufficient, and we may later come back to you for this Request. For subpart (4), we refer you to our proposal for Request 8 (Flexi/Trac) / Request 9 (DCLI) below.

Request 2 – We are willing to limit this request to data contained in already existing reports kept in the ordinary course of business that are sufficient to show trends for the four relevant geographic chassis markets, including such documents sufficient to show trends in Carrier Haulage vs. Merchant Haulage container movement percentages, the use of motor carrier-owned chassis, and the use of motor carrier chassis leases vs. daily rentals. If your clients do not possess such reports for the four geographic markets, we will accept national data.

Request 3 – We are willing to limit this Request to documents sufficient to show your clients’ daily rental prices for the four relevant geographic chassis markets.

Request 4 – While the materials are outside the general five-year limit, the request itself is sufficiently narrow that it cannot be deemed burdensome. However, if there is a

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way to partially respond to the request in a non-burdensome way, such as by providing a declaration, admissible in this proceeding, as to the truth of the information and charts set forth on the Pool of Pools website regarding the benefits of the Pool-of-Pools, such as quoted in paragraph 55 of the Complaint, we are willing to work with you on such a mutually-agreeable declaration.

Request 5 – We agree to table this Request and first seek responsive documents from other entities.

Request 6 (DCLI) – If we receive sufficient responses from your clients to our other requests, we agree to table this Request.

Request 6 (Flexi/Trac), Request 7 (DCLI) – We seek through this Request documents sufficient to show the operation of the Pool of Pools, including policies, rules, manuals, and documents showing Pool operations. Rather than requiring documents over the five years, we are willing to accept documents with a declaration admissible in the proceeding that the current documents accurately reflect those elements and operations over the five-year period. We would also be willing to work with you on acceptable declarations for each of the three IEPs, admissible in the proceeding, covering the matters set forth in this request, *e.g.*, concerning the box rules for each of the three IEPs, statements, and graphics on the Pool of Pools website, and as to the procedures for assignment of chassis usage as described by TRAC, as set forth in paragraph 56 of the Complaint.

Request 7 (Flexi/Trac), Request 8 (DCLI) – Assuming we receive a sufficient response to the prior request, we agree to table this Request.

Request 8 (Flexi/Trac), Request 9 (DCLI) – As the IEPs continue to make the benefits and harms of establishing and/or disestablishing interoperable chassis pools a matter of public debate, *e.g.*, TRAC’s April 14, 2021 statement “5 Benefits of the Single-Provider Neutral Chassis Pools for the Intermodal Community,” *available at* <https://www.tracintermodal.com/blog/5-benefits-of-single-provider-pool-model>, this request seeks such documents that are highly relevant to the proceeding on a sufficient to show basis, such as management studies and presentations.

Request 9 (Flexi/TRAC), Request 10 (DCLI) – While you note that we proposed possible limitations on this Request, for example by accepting summaries and trends

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Jeffrey S. King  
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regarding revenue data, you did not indicate whether such limitations might be acceptable to your clients. Please respond.

Request 10 (Flexi/TRAC), Request 11 (DCLI) – We viewed this as a simple, unobjectionable request that is reasonably made in virtually every case. The information sought is relevant for depositions of your clients and other entities. Whether we receive the information in a “chart” or in narrative form is less important than that we receive the information requested.

As you note, we are willing to accommodate reasonable extensions to respond to these Requests. But given the accelerated schedule in this case, we cannot indefinitely extend deadlines for response to the subpoenas. We are willing to discuss reasonable accommodations, such as piecemeal production of responsive documents on a rolling basis. But we nevertheless need to receive your clients’ productions by no later than June 1, 2021 to comply with the case deadlines set by Judge Wirth.

Moreover, we do not understand, nor can we agree to a blanket statement that any response to the subpoenas would be “without prejudice or without waiver.” IMCC is entitled to a complete response to the subpoena. We remain willing to negotiate the scope of the document specification so as to obtain documents sufficient to respond to the requests without imposing undue burden.

We look forward to your timely response and to reaching agreement on the scope of your clients’ production in this proceeding.

Sincerely,

*David Golden*

David Golden

# Exhibit 7

May 13, 2021

Jeffrey S King  
jeffrey.king@klgates.com

**By E-mail**

T +1 617 261 3179  
F +1 617 261 3175

W. Stephen Cannon (scannon@constantinecannon.com)  
David D. Golden (dgolden@constantinecannon.com)  
Richard O. Levine (rlevine@constantinecannon.com)  
Seth D. Greenstein (sgreenstein@constantinecannon.com)  
Constantine Cannon LLP  
1001 Pennsylvania Avenue, NW, Suite 1300N  
Washington, D.C. 20004

**Re: IMCC v. OCEMA, et al., FMC Docket No. 20-14 - IMCC Subpoenas to Non-Party Chassis Providers**

Dear Counsel:

In response to the subpoenas you have served on our clients Direct ChassisLink Inc. ("DCLI"); Flexi-Van Leasing, Inc. ("Flexi"); and Interpool, Inc. d/b/a TRAC Intermodal ("TRAC") (collectively, "Chassis Providers"), we have held two meet and confer sessions and also provided our position to you in letters dated March 30, 2021 and April 22, 2021. You provided us a letter on May 3, 2021 asserting that our clients, who are not parties to the action you have brought against various ocean carriers and their chassis pool management entities, should nonetheless be required to provide you extensive discovery about their own pools, which are not the subject of your claims. You have also sought substantial discovery as to their revenues and their strategic and business analyses. After our meet and confer on May 7, 2021, you asked that we confirm our position regarding each request in the subpoenas. This letter addresses that request.

We will not repeat here the reasons we have given in our prior letters and discussions as to why we believe your requests are largely inappropriate, particularly at a time that, in our understanding, information exchange among the parties themselves is still in its relatively nascent stages. We continue to stand on those reasons. We have nonetheless sought, in the interests of compromise, and to try to reduce the burden on our clients, who are not the subject of your claims, to identify information that we can produce without undue burden and that may have some arguable relevance to your claims against the ocean carriers and their pools. We will repeat those offers here at your request. Our item-by-item responses are provided below, after we first address some issues that apply to your subpoenas generally.

Confidentiality: We have shared with you, and OCEMA's counsel, the changes the Chassis Providers request with respect to your current Stipulation and Order of Confidentiality. Your May 3 letter stated your intent to submit to Judge Wirth for approval a modified order to provide the "same confidentiality protections to party and non-party productions," and did not suggest a willingness to consider changes to that order at our clients' request. To be clear, our clients cannot agree with the modified order you have proposed, as it does not address many of the

concerns addressed in the requested modifications you have now received. We are willing to work with the parties to try to agree on an order before it is submitted to Judge Wirth, to avoid the need to do this twice and to expedite resolution of this issue.

You asked us why the Chassis Providers' documents require treatment that is different from that provided to the parties' documents under the current order or your modified order. The answer is quite simple: IMCC has an affiliated entity (NACPC) that is a direct competitor to the Chassis Providers, who see this litigation as a direct effort to give that competitor a competitive advantage over them. That is why the Chassis Providers have requested many of their proposed modifications. This issue will need to be resolved before the Chassis Providers will produce any confidential information.

Relevance: You continue to have a view of relevance that we do not believe is justified. That, coupled with the amount of the requested information that is available from parties and others, as well as the balancing of burdens, particularly when dealing with true non-parties, confirms your subpoenas are overly broad and largely misdirected to the Chassis Providers. Our objections in this regard are set forth in our prior letters, and we do not see that your May 3 letter or our discussions have addressed those objections.

Other sources should be exhausted first: We have also objected on the grounds that IMCC should first obtain the requested documents from (1) the parties to the action, and (2) other entities that are members of, affiliates of, or closely related to, IMCC. This should occur before IMCC burdens our clients as non-parties to this action. You have agreed, in connection with certain requests, to seek that information from parties to the action. However, you do not agree to do that with respect to "other third parties." We could not disagree more with you on this point. IMCC's members possess much of the information you now seek from the Chassis Providers, and we understand your firm already represents certain individual members in connection with discovery matters in this action. More importantly, IMCC's members are not uninvolved third parties here; they are members of the conference that is bringing claims on their behalf. You should seek all of the subpoenaed information from IMCC's members and affiliates, before burdening the Chassis Providers with these requests.

Burden: The Chassis Providers have already incurred expense in responding to what they view as overreaching in the subpoenas. The full extent of the burden has not yet been determined, and will not be known until the scope and extent of the Chassis Providers' production obligations are confirmed and satisfied. The Chassis Providers reserve all rights in this regard, specifically their claim for reimbursement of costs and fees incurred in responding to the subpoenas.

Time period: You confirmed on our call that your May 3 letter contained an incorrect reference to "a general six-year time period" on its first page, and that it should read: "five-year time period."

General Production issues: Before addressing each specific request, we provide here general information regarding what the Chassis Providers are willing to produce, as these general positions may apply to multiple specific requests.

1. Authentication: The Chassis Providers are willing to declare, in an admissible form, as to the authenticity of documents, website postings, etc. We request that you provide your requests for authentication to us in writing, attaching exact copies of what you request be authenticated, and the Chassis Providers will review your request, and, collectively or individually as appropriate, provide a declaration for admissibility purposes where the item is authentic.

2. Other declarations: The Chassis Providers will also consider declaring, in an admissible form, certain statements (along the lines of what parties might stipulate to during the course of litigation) that would provide you what you think you need to address your claims without the need for extensive discovery as to matters that might not be contested. This goes beyond the authentication issue, but would address declarations as to facts and events. As above, we request that you provide your requests to us in writing, containing the precise declarations that are requested, and the Chassis Providers will consider each in good faith. You have specifically suggested this approach with respect to requests No. 4 and No. 6/7 and we had previously suggested this as a possible approach to request No. 2.

3. Evidence of ocean carrier exercise of market power: With respect to certain requests that seek, inappropriately in our view, broad information and the rules, procedures, and operations of our clients' pools—which again are not the pools that are the subject of your complaint—the Chassis Providers have offered to perform a reasonable inquiry to determine whether there is any documentation/evidence of ocean carrier exercise of market power that resulted in the creation of the “box rules” or the purported participation rule—the two rules highlighted in your complaint—rather than those rules being the result of independent business judgments of the Chassis Providers. The Chassis Providers will either produce what is identified or will provide confirmation that no such materials exist.

Specific Requests in Subpoenas: We now list each specific subpoena request and provide any additional specific information for each that is not already provided above:

Request for Production No. 1 (same in all three / “analyses of interoperability, etc.”): The Chassis Providers stand by their objections to this request and the clarifications raised above and in our prior communications.

Request for Production No. 2 (in all three / “chassis/movement data”): The Chassis Providers stand by their objections to this request and the clarifications raised above and in our prior communications.

Request for Production No. 3 (in all three / “discounts”): The Chassis Providers stand by their objections to this request and the clarifications raised above and in our prior communications. However, as requested, the Chassis Providers will produce their respective published rates for five years in the agreed upon markets (Ports of LA/LB, Port of Savannah, intermodal terminals in Chicago area, and intermodal terminals in the Memphis area). Due to the manner in which this information is maintained, it will be provided in narrative format.

Request for Production No. 4 (in all three / “DOJ Business Review Letter”): The Chassis Providers stand by their objections to this request and the clarifications raised above and in our prior communications. We also raised the concern that, given the nature of this topic, any responsive information is very likely to consist mostly, if not entirely, of attorney-client communications and work product, and therefore would be privileged. Of course, the exception is whatever is in the public domain, such as final submissions, to which you already have access.

Request for Production No. 5 (in all three / “FMC Memphis Study”): You have agreed to seek this information from other sources and table this Request.

Request for Production No. 6 (unique to DCLI / “American Shipper interview”): You have agreed to table this request as it is covered by other requests.

Request for Production No. 6 (in Flexi/TRAC, No. 7 in DCLI / "POP operations"): The Chassis Providers stand by their objections to this request and the clarifications raised above and in our prior communications, and will provide any information regarding carrier market power in adopting the box rules or purported participation rule described above.

Request for Production No. 7 (in Flexi/TRAC, No. 8 in DCLI / "POP eligibility requirement"): You have agreed to table this request as it is covered by other requests. Our response to the prior request applies here too.

Request for Production No. 8 (in Flexi/TRAC, No. 9 in DCLI / "interoperable pool analyses"): The Chassis Providers stand by their objections to this request and the clarifications raised above and in our prior communications.

Request for Production No. 9 (in Flexi/TRAC, No. 10 in DCLI / "revenues"): The Chassis Providers stand by their objections to this request and the clarifications raised above and in our prior communications.

Request for Production No. 10 (in Flexi/TRAC, No. 11 in DCLI / "organization, ownership, and reporting responsibilities for chassis"): The Chassis Providers stand by their objections to this request and the clarifications raised above and in our prior communications. However, the Chassis Providers will produce organizational information, consisting of a narrative listing of their respective "outward facing" commercial personnel (name and position) who negotiate the chassis use/lease agreements with their respective ocean carrier customers.

We previously requested that you provide us any written responses and objections to discovery that you served on OCEMA's counsel, in order for us to assess the status of that discovery and how it impacts the issues raised above. We renew that request, and now also request the responses and objections you have asserted with respect to any subpoenas served on IMCC members, or any other third parties, that you represent.

We are available to discuss the foregoing at your convenience.

Very truly yours,



Jeffrey S King

cc: John Longstreth ([john.longstreth@klgates.com](mailto:john.longstreth@klgates.com))  
Christopher Raleigh ([craleigh@cozen.com](mailto:craleigh@cozen.com))  
Wayne R. Rohde ([wrohde@cozen.com](mailto:wrohde@cozen.com))